VIRGINIA RAILWAY EXPRESS

REQUEST FOR PROPOSALS

(RFP) No. 026-007

COST ESTIMATING
AND
COST VALIDATION SERVICES
FOR
L'ENFANT STATION AND FOURTH TRACK IMPROVEMENTS PROJECT

RFP Issued: July 30, 2026

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I. INTRODUCTION TO RFP

01. PURPOSE

A. The purpose of this Request for Proposals (RFP) is to establish a Contract with one (1) qualified and experienced firm to provide Cost Estimating and Cost Validation Services (CVS) in support of the Construction Manager/General Contractor (CM/GC) delivery of the L'Enfant Station and Fourth Track Improvements Project (LEF Project). For purposes of this solicitation, including all attachments hereto, the selected firm is referred to as the "Contractor", the "Consultant" or the "Cost Validation Services Consultant (CVS Consultant)." The Construction Manager/General Contractor is referred to as the "CMGC" and will be awarded separate contracts for preconstruction services and construction of the LEF Project.

02. VRE BACKGROUND

A. The Virginia Railway Express (VRE) is a commuter rail service linking the District of Columbia and Northern Virginia. The Northern Virginia Transportation Commission (NVTC) and the Potomac and Rappahannock Transportation Commission (PRTC) are transportation districts established under Virginia law and jointly own this service. An Operations Board consisting of members from each of the jurisdictions within the VRE service area governs the development and operation of VRE and serves as an advisory board to the NVTC and PRTC governing boards. Use of the term VRE in this RFP refers to NVTC and PRTC.

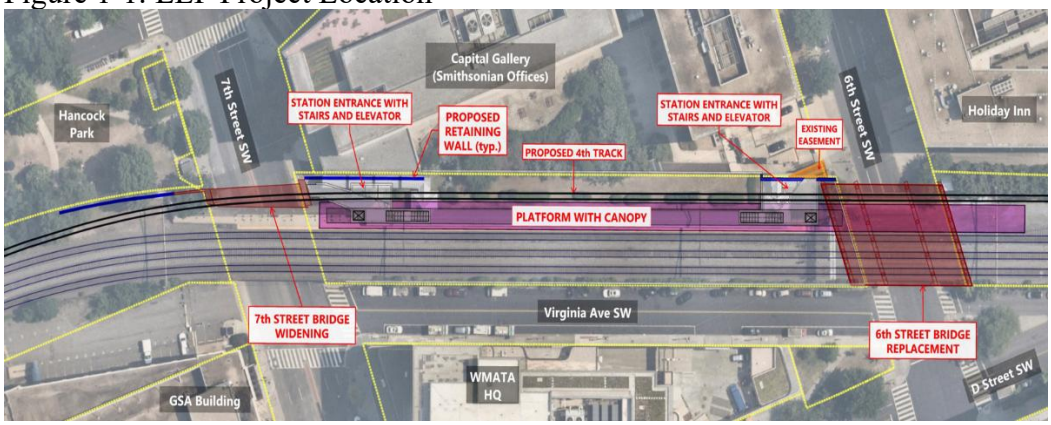
B. VRE began operations in 1992 on two (2) lines, Fredericksburg and Manassas. In June 2025, VRE's Operations Board recommended adoption of System Plan 2050 providing both a long-range vision for 2050 service as well as a near-term implementable 2030 service plan, based largely on the expected infrastructure and rolling stock constraints in the 2030 decade, but also on the opportunities to increase service as a result of programmed VRE and Transforming Rail in Virginia (TRV) infrastructure projects expected to be complete by that time.

C. The primary mission of VRE is to provide commuter-oriented passenger rail service between the outlying suburbs and the Washington-Arlington-Alexandria urban core. Some tourists and "day-trippers" also ride the trains. The service is heavily oriented towards that core area in the morning peak and in the opposite direction in the evening peak.

03. PROJECT BACKGROUND

The LEF Project includes reconstruction of the existing VRE L'Enfant Station and construction of a continuous fourth mainline track between the Virginia (VA) and L'Enfant (LE) Interlockings in Washington, DC, between roughly 10th Street SW and 2nd Street SW. The LEF project is located along Virginia Avenue SW between 6th Street SW and 7th Street SW within a shared-use rail corridor utilized by commuter rail (VRE), intercity passenger rail (Amtrak), and freight rail (CSX Transportation). See Figure1-1, below for a map of the LEF Project Location.

Figure 1-1: LEF Project Location



D. The existing VRE L'Enfant Station includes a 550-foot-long by 12.5-foot-wide side platform which is shorter than the longest VRE train in operation, thus creating a condition where all cars on the train are not accessible for boarding or alighting. As a result, passengers are required to move between cars, contributing to increased dwell times. The LEF Project will replace the existing platform with a new center platform designed to accommodate simultaneous boarding and alighting from two full-length eight (8)-car trains, providing full platform access to all passenger cars and improving passenger circulation capacity.

E. The Project includes construction of new station access points at the north and south ends of the platform, consisting of stairs, elevators, and associated equipment rooms. These improvements will enhance passenger access, provide operational redundancy, and achieve compliance with the Americans with Disabilities Act of 1990 (ADA).

F. Railroad infrastructure improvements include, but are not limited to:

1. Installation of approximately one (1) mile of new fourth mainline track;
2. Demolition of the existing platform and station access points at 6th Street SW and 7th Street SW;
3. Interlocking modifications and signal system upgrades, including construction of a signal house and associated equipment foundations;
4. Drainage improvements and utility relocations, including installation of railroad duct banks;
5. Construction of retaining walls and load transfer platforms;
6. Removal and replacement of existing catenary structures;
7. Replacement of the railroad bridge over 6th Street SW; and
8. Widening and modification of the railroad bridge and abutments over 7th Street SW.

G. Construction will be performed in phases to maintain continuous freight, commuter, and passenger rail operations, as well as local pedestrian, bicycle, and vehicular traffic throughout the duration of the LEF Project.

H. Implementation of the LEF Project requires coordination with multiple agencies, stakeholders, and related infrastructure initiatives, including adjacent property owners; the Long Bridge Capacity Improvement Project; the Transforming Rail in

Virginia Program; the Amtrak First Street Tunnel Project; CSX Transportation; Amtrak; Washington Metropolitan Area Transit Authority (WMATA); Virginia Passenger Rail Authority (VPRA); and the District Department of Transportation (DDOT).

I. The Scope of Work under this Contract includes the provision of independent, objective, and fully auditable construction cost estimating and cost validation services to assist VRE in evaluating and validating construction costs developed by the CM/GC during design development, preconstruction services, and Guaranteed Maximum Price (GMP) negotiations. These services will provide VRE with a quantified, documented basis for assessing cost reasonableness, risk allocation, and commercial terms at each major LEF Project milestone.

04. FUNDING

The LEF Project is funded in whole or in part by Federal and State grants and is subject to certain provisions required by the respective Federal and State agencies. The Consultant shall not perform any act, fail to perform any act, or refuse to comply with any VRE requests which would cause VRE to be in violation of Federal and State agency terms and conditions.

II. PROCUREMENT SCHEDULE

RFP Issued	**July 30, 2026**
Confirm Attendance for Virtual Pre-Proposal Meeting	**August 10, 2026** at 3:00 P.M. EST
Pre-Proposal Meeting	**August 12, 2026** at 1:00 P.M. EST
Submission of Written Questions	**August 14, 2026** at 4:00 P.M. EST
Responses to Written Questions	**August 17, 2026**
Proposals Due (Closing Date and Time)	**September 1, 2026** at 2:00 P.M. EST
Interviews (Optional)	**To Be Determined**

Virginia Railway Express (VRE) reserves the right to make changes to the above-mentioned schedule. All such changes shall be made by an addendum to the solicitation. Offerors must frequently monitor VRE's website at www.vre.org for information concerning this solicitation, including any addenda or notices.

III. INSTRUCTIONS FOR OFFERORS

01. COMPETITIVE NEGOTIATION FOR PROFESSIONAL SERVICES

This solicitation is a competitive negotiation for professional services, as defined in the PRTC and VRE Public Procurement Policy and Procedures Manual. The content of the Proposals and the identity of the Offerors are not public record until a Notice of Intent to Award has been issued. The opening of Proposals is therefore not public.

02. PROPOSAL AND CONTRACT REQUIREMENTS

A. Federal funds may be used for the subsequent Contract. Federal requirements are subject to change. The Offeror is responsible for complying with the most current regulations. The Offeror agrees that the most recent of such Federal and State requirements will govern the administration of the Contract at any particular time during performance of the Contract, unless VRE issues a written determination otherwise.

B. Additionally, VRE follows Virginia procurement laws. Accordingly, all applicable requirements will apply. Offerors are expected to become familiar with these requirements and shall not submit Proposals if unable to execute a Contract containing such provisions.

C. VRE will provide a Contract containing these provisions for execution by the prospective Contractor that is selected. Offerors shall not use their own standard contracts for this engagement.

03. OBLIGATION OF CONTRACTOR

A. Before submitting a Proposal, the Offeror shall be responsible for reading and examining the solicitation documents including these Instructions for Offerors. Submission of a Proposal shall be deemed verification of such reading and examination by the Offeror.

B. By submitting a Proposal, the Offeror agrees that it has satisfied itself from a personal investigation of the conditions to be met, that the obligations herein are fully understood, and no claim may be made nor will there be any right to cancellation or relief from the Contract because of any misunderstanding or lack of information.

04. COMPETITION INTENDED

It is VRE's intent that this solicitation promotes competition. It shall be the Offeror's responsibility to advise VRE if any language or requirements included in this RFP restrict or limit the purchase to a single source. Such notification must be received by the VRE Director of Purchasing and Contract Administration, in writing, not later than fifteen (15) calendar days prior to the date and time set for receipt of Proposals. A review of such notifications will be made, and the Offeror notified of the results of the review.

05. INTEREST IN MORE THAN ONE PROPOSAL AND COLLUSION

Reasonable grounds for believing that an Offeror is interested in more than one Proposal for a solicitation, including both as an Offeror and as a Subcontractor for another Offeror, or that collusion exists between two or more Offerors, will result in rejection of all affected Proposals. However, an individual or entity acting only as a Subcontractor may be included as a Subcontractor on two or more different Offerors' Proposals. Offerors rejected under this provision will also be disqualified if they respond to a re-solicitation for the same work.

06. POINT OF CONTACT

A. All inquiries or correspondence shall be directed to the VRE Contract Administrator and the Director of Purchasing and Contract Administration whose names and contact information appear on the face of this solicitation.

B. Communications relating to this RFP, other than to the Contract Administrator and the Director of Purchasing and Contract Administration, are prohibited during the RFP response period. **Do not contact VRE consultants, or VRE personnel other than the Contract Administrator and Director of Purchasing and Contract Administration regarding this solicitation.**

07. WRITTEN COMMUNICATIONS

A. VRE will assume no responsibility for any understanding or representations concerning conditions made by any of its officers or agents prior to the execution of the Contract, unless included in this RFP or related documents or addenda thereto.

B. Oral explanations or instructions given before award of the Contract will not be binding.

08. CLARIFICATION OF TERMS

If an Offeror has questions about the solicitation documents, the Offeror shall contact the VRE Contract Administrator and Director of Purchasing and Contract Administration whose names appear on the face of the solicitation. Any revisions to the solicitation will be made only by addendum issued by VRE.

09. AVAILABILITY OF SOLICITATION DOCUMENTS

The electronic versions of the solicitation documents are intended to provide convenience to prospective Offerors. Be advised that it is the responsibility of prospective Offerors to monitor VRE's website for any addenda, notices or postings. Failure to submit signed addenda may be grounds to declare a Proposal non-responsive.

10. PRE-PROPOSAL MEETING

A. A **non-mandatory pre-proposal meeting** to discuss the requirements of this solicitation will be held virtually for prospective Offerors via Microsoft Teams video conference on ***the date and time specified in PART II. – PROCUREMENT SCHEDULE*** of this RFP.

B. The video conference will use the camera, speakers, and microphone of each attendee's computer, tablet, or smartphone. However, there is also an ability to participate by phone as an audio-only option.

C. Individuals interested in participating in the pre-proposal meeting can join as follows:

Join on your computer or mobile app
Click here to join the meeting
Join the meeting now
Meeting ID: 289 591 233 329 261
Passcode: yw7CY2mh

OR

Dial in by phone
+1 540-566-5614,,135028446# United States, Roanoke
Phone conference ID: 135 028 446#

11. CONFIRM ATTENDANCE AT THE PRE-PROPOSAL MEETING

Offerors must confirm their attendance at the non-mandatory pre-proposal meeting by contacting the Contract Administrator and Director of Purchasing and Contract Administration, whose names and contact information appear on the face of this solicitation, prior to the ***date and time specified in PART II. – PROCUREMENT SCHEDULE*** of this RFP. *It is recommended that prospective Offerors monitor VRE's website for an addendum which may change the format of the pre-proposal meeting.*

12. [RESERVED]

13. [RESERVED]

14. SUBMISSION OF WRITTEN QUESTIONS

A. **Deadline**: All questions and requests for clarification regarding the meaning or interpretation of this RFP and other solicitation documents, or any ambiguities, discrepancies, inconsistencies, or conflicts in or between any of the technical, pricing, or contractual provisions, must be submitted no later than the ***date and time specified in PART II. – PROCUREMENT SCHEDULE*** of this RFP. Questions and clarifications requested after such time will not be answered unless VRE elects, at its sole discretion, to do so.

B. **Format for Questions:** Questions must be submitted in Microsoft Word format and include the related Section number and title.

C. **VRE Point of Contact**: Questions must be submitted to the VRE Contract Administrator and Director of Purchasing and Contract Administration in writing via electronic mail as listed on Page 1 of this RFP. No questions or requests for additional information, clarification or any other communication should be directed to any other individual.

D. **No oral communication will be accepted.** VRE will not be bound by any oral communications, or written interpretations or clarifications that are not set forth in an addendum.

E. Questions and responses will be posted on VRE's website at www.vre.org.

F. Any interpretation of a question made by VRE will be responded to and distributed in the form of an addendum to the RFP and will be available to all interested Offerors through VRE's website.

15. ADDENDA

VRE may issue addenda to the RFP. Addenda, if any, will be issued at least five (5) calendar days prior to the Proposal closing date. Any addendum issued less than five (5) calendar days prior to the closing date will, if necessary, contain a provision modifying the Proposal closing date to a date that will provide Offerors with adequate time to respond to the addendum.

16. MODIFICATION OF PROPOSAL CLOSING DATE

VRE reserves the right to modify the Proposal closing date and/or time. If Offerors have already submitted their Proposals to VRE when the Proposal closing date and/or time are modified, VRE will afford those Offerors the opportunity to revise or withdraw their Proposals.

17. VRE INCLEMENT WEATHER POLICY

In the event of inclement weather conditions, such as heavy snowfall, icy streets and sidewalks, flooding, earthquakes, tornadoes, and other natural disasters, which result in the cancellation of VRE service, the Proposal due date will be extended to the next business day VRE service resumes. Notifications of service operation interruptions and the resumption of service are generally posted on VRE's website. An official addendum to the solicitation will be posted on VRE's website at the earliest opportunity once VRE service resumes operation.

18. CANCELLATION/WITHDRAWAL OF RFP

VRE reserves the right to cancel or withdraw in whole or in part this RFP at its sole discretion. Offerors will be notified in the event the RFP is cancelled via VRE's website.

19. WAIVER OF INFORMALITIES

VRE reserves the right to waive informalities and minor irregularities in Proposals.

20. WITHDRAWAL OF PROPOSAL PRIOR TO CLOSING DATE

Proposals may be withdrawn by written notice from the Offeror to the VRE Director of Purchasing and Contract Administration prior to the RFP closing date and time. The withdrawal shall be made by the person signing the Proposal or by any individual who is authorized by the Offeror. The Offeror must provide written evidence of the individual's authority to withdraw the Proposal if the individual withdrawing the Proposal is other than the person signing the Proposal. Proposals may be withdrawn no later than two (2) business days prior to the closing date.

21. WITHDRAWAL OF PROPOSALS AFTER PROPOSAL OPENING

A. Requests for withdrawal of Proposals after opening of such Proposal, but prior to award, shall be transmitted to the VRE Director of Purchasing and Contract Administration. The Offeror shall give notice in writing of its claim of the right to withdraw its Proposal accompanied by full documentation supporting the request (original work papers, documents, and materials used in the preparation of the Proposal). If the request is based on a claim of error, documentation must show the basis of the error. Proposals may be withdrawn within two (2) business days of the conclusion of the Proposal opening procedure.

B. Proposals may be withdrawn for good cause after the closing date and prior to award. No Offeror who is permitted to withdraw a Proposal shall, for compensation, supply any material or labor to or perform any subcontract or other work agreement for the person or firm to whom the Contract is awarded or otherwise benefit, directly or indirectly, from the performance of the project for which the withdrawn Proposal was submitted.

C. If VRE denies the withdrawal of a Proposal within ten (10) calendar days after receiving notice from the Offeror under the provisions of this Section, VRE will notify the Offeror in writing stating the reasons for its decision and award the Contract to such Offeror, provided such Offeror is a responsible and responsive Offeror and negotiations are successful with respect to price/cost.

22. REJECTION OF PROPOSALS

A. VRE expressly reserves the right to reject any or all Proposals or any part of a Proposal, and to resolicit the services in question, if such action is deemed to be in the best interest of VRE.

B. Proposals which fail to meet the solicitation requirements, or which are incomplete, conditional or obscure, or which contain additions not called for, erasures, alterations or irregularities of any kind or in which errors occur, or which contain abnormally high or abnormally low prices, for any class or item of work, may be rejected as invalid at VRE's discretion.

C. The receipt of more than one (1) Proposal from the same Offeror, whether the same or different names appear on the signature page, shall result in none of the Offeror's Proposals being considered.

D. Reasonable proof for believing that any Offeror has an interest in more than one (1) Proposal for the work contemplated will cause the rejection of all Proposals made by the Offeror directly or indirectly.

E. Any or all Proposals shall be rejected if there is reason to believe that collusion exists among the Offerors.

23. DISPOSITION OF PROPOSALS

Offerors' Proposals will not be returned. VRE will retain the Proposal for the contract file.

24. PROPOSAL PREPARATION COSTS

This RFP does not commit VRE to an award, nor to pay any costs associated with the preparation and/or submission of any Proposal. VRE shall not reimburse any costs incurred by Offerors in responding to this RFP or in competing for Contract award.

25. QUALIFICATION OF OFFERORS

VRE may make such reasonable investigations as deemed proper and necessary to determine the ability of the Offeror to furnish the services and/or goods required in the performance of this Contract. The Offeror shall furnish VRE all such information and data for this purpose as may be requested. VRE further reserves the right to reject any Proposal if the evidence submitted by, or investigations of, such Offeror fails to satisfy VRE that such Offeror is properly qualified to carry out the obligations of the Contract and to provide the services and/or goods contemplated therein.

26. ADDITIONAL INFORMATION

VRE reserves the right to ask any Offeror to clarify its Proposal.

27. PRE-AWARD SURVEY

A. After the due date and prior to Contract award, VRE shall have reviewed and evaluated all data submitted by the Offeror.

B. VRE reserves the right to perform or have performed a financial review of the successful Offeror's resources, and to require the submission of a statement of work in progress by the Offeror.

C. VRE may make such reasonable investigations as deemed proper and necessary to determine the Offeror's responsibility and ability to perform the Contract. The Offeror shall furnish VRE with such information and data for this purpose as may be requested. VRE reserves the right to inspect the Offeror's physical firm prior to award to satisfy questions regarding the Offeror's capabilities.

28. FINANCIAL STATEMENT

A. VRE will conduct a pre-award evaluation of the selected Offeror's "professional services" cost proposal having a value greater than $100,000 prior to award of a Contract. The Offeror is required to submit a Federal Acquisition Regulation (FAR)

audit meeting the requirements of Part 31 of Title 48 of the Code of Federal Regulations when a prime contractor or combined prime contractor and subconsultant cost proposal has a value of $100,000 or more.

B. Failure to submit a financial statement upon request will be grounds for immediate disqualification. If the financial statement is not for the identical organization submitting the Proposal, the Offeror must submit a written explanation of the relationship and financial responsibility of the organization whose financial statements are provided (e.g., parent-subsidiary).

C. VRE will return the financial statements at the conclusion of the award process only upon receipt of a written request signed by an officer of the organization or the same person who signed the original Proposal. VRE considers non-public financial statements submitted pursuant to this Section to be proprietary information that is not subject to disclosure under the Virginia Freedom of Information Act.

D.

29. DEBARMENT STATUS

A. By submitting a Proposal, and completing the representations and certifications, the Offeror certifies that it is not currently debarred, suspended, declared ineligible or voluntarily excluded from submitting Proposals on contracts by any agency of the Commonwealth of Virginia or the U.S. Federal Government, nor are they an agent of any person or entity that is currently debarred from submitting Proposals on contracts by an agency of the Commonwealth of Virginia or the U.S. Federal Government. Contractors debarred by the Commonwealth Transportation Board and/or the U.S. Federal Government shall be ineligible to submit a Proposal to VRE.

B. By submitting a Proposal, the Contractor further certifies that it is not debarred, suspended, declared ineligible, or voluntarily excluded from participating in contracts with the Commonwealth of Virginia or the U.S Federal Government, and that it will refrain from awarding any subcontract to a debarred or suspended Subcontractor.

C. In addition, prospective contractors agree to comply with the requirements of Executive Orders Nos. 12549 and 12689, "Debarment and Suspension," 31 USC Section §6101 note; and U.S. DOT regulations, “Government Debarment and Suspension (Non-procurement),” within 49 CFR Part 29.

30. CONFLICT OF INTEREST STATEMENT

A. A conflict situation can arise when an Offeror takes action or has interests that interfere with the Offeror’s ability to perform its work objectively and effectively. The Director of Purchasing and Contract Administration may preclude those entities from receiving an award for any such work reasonably deemed to pose a conflict of interest with the work provided hereunder.

B. Prior to submitting a Proposal in response to this solicitation, each Offeror shall conduct an internal review of its current affiliations, its joint venture partners, as well as any subsidiaries of a joint venture partner, to include any companies sharing

common ownership with a joint venture partner, to identify potential conflicts of interest relative to the anticipated contract. The Offeror shall also require its team members (proposed Subcontractors) to identify potential conflicts of interest they may have in regard to this procurement.

C. If a potential conflict of interest or competitive advantage is identified, the organization shall submit in writing the pertinent information to the VRE Director of Purchasing and Contract Administration, whose name and contact information appear on the face of this solicitation, so that a determination can be made as to the extent of the conflict or competitive advantage.

D. VRE, in its sole discretion, will make a formal written determination relative to each potential organizational conflict of interest, and its ability to mitigate such a conflict. If VRE determines that a conflict of interest cannot be mitigated, the organization determined to have the conflict of interest shall not be allowed to participate in response to the solicitation. Failure to abide by VRE's determination in this matter may result in a Proposal being declared non-responsive.

E. The Offeror, any of its joint venture partners, any subsidiaries of a joint venture partner, any companies sharing common ownership with a joint venture partner, or any of its Subcontractors will be precluded from providing other services to VRE (i.e., planning, design, construction or cost estimating and cost validation services) which conflict with its services under this Contract.

31. INSPECTION OF PROPOSALS

The Virginia Freedom of Information Act, §2.2-3700 *et seq*. shall govern the release of public records related to this procurement. Trade secrets or proprietary information related to a procurement may not be subject to public disclosure, provided the requirements of §2.2-4342F VA Code Ann. are met.

32. TRADE SECRETS OR PROPRIETARY INFORMATION

A. Trade secrets or proprietary information submitted by an Offeror in connection with a procurement transaction submitted pursuant to the Code of Virginia, subsection F of §2.2-4342 shall not be subject to the Virginia Freedom of Information Act (§ 2.2- 3700 et seq.).

B. However, the Offeror shall:

1. Invoke the protections of this Section prior to or upon submission of the data or other materials;

2. Identify the data or other materials to be protected by clearly marking each individual page with "PROPRIETARY"; and

3. State the reason why protection is necessary.

C. It is the Offeror's sole responsibility to defend such exemptions if challenged in a court of competent jurisdiction.

D. Except for the foregoing limitation, VRE may duplicate, use, and disclose in any matter and for any purpose whatsoever and have others do so; all data furnished in response to this RFP. VRE has the right to release trade secrets or proprietary information to a third party which may assist VRE in the review and evaluation of Proposals.

33. REPLACEMENT OR AUGMENTATION OF KEY PERSONNEL OR SUBCONTRACTORS

The Key Personnel and Subcontractors in an Offeror's Proposal are considered essential to the Offeror's qualifications and may not be replaced or substituted, nor may additional personnel or Subcontractors be added, after qualification of the Offeror's Proposal unless VRE approves the changes in advance in writing.

34. REGISTRATION OF PROFESSIONAL SERVICE PROVIDERS

A. A person, corporation, partnership or other entity engaging in the practice of architecture, professional engineering, land surveying, certified landscape architecture or any combination thereof shall not offer to provide or provide such services to VRE unless:

1. It is registered with the Commonwealth of Virginia State Board for Architects, Professional Engineers, Land Surveyors and Landscape Architects ("Board") in accordance with the Code of Virginia, Sections 54.1-411 (business entities) or 13.1-549 (professional corporations): or

2. It is exempt from registration because of its status as a sole proprietorship, as defined in the statute.

B. By submitting a signed Proposal, an Offeror certifies that it has the required registration or is exempt from the requirement. VRE may also require an Offeror to provide proof of registration or exemption. For further information on the registration requirements, contact the Virginia Department of Commerce, 3600 West Broad Street, Richmond, Virginia 23230, telephone number (804) 367-8500.

35. AUTHORITY TO TRANSACT BUSINESS

A. Any Offeror organized as a stock or nonstock corporation, limited liability company, business trust, or limited partnership or registered as a registered limited liability partnership must be authorized to transact business in the Commonwealth of Virginia as a domestic or foreign business entity, if so required by Title 13.1 or Title 50 of the Code of Virginia, or as otherwise required by law. The proper and full legal name of the entity and the identification number issued to the Offeror by the Virginia State Corporation Commission must be included in the Representations, Certifications and Other Statements of Bidders/Offerors provided as an attachment to this solicitation.

B. Any Offeror that is not required to be authorized to transact business in the Commonwealth must include in its Proposal a statement describing why the Offeror is not required to be so authorized. VRE may require an Offeror to provide documentation that 1) clearly identifies the complete name and legal form of the

entity and 2) establishes that the entity is authorized by the State Corporation Commission to transact business in the Commonwealth of Virginia. Failure of an Offeror to provide such documentation may be grounds for rejection of its Proposal or cancellation of any award. For further information, refer to the Commonwealth of Virginia State Corporation Commission's website at: www.scc.virginia.gov.

36. EXCEPTION TO TERMS AND CONDITIONS

Exceptions to the Special Provisions and General Provisions will only be considered after qualified Offeror(s) have been ranked. After selection of the highest-ranked Offeror for negotiations, VRE will notify the firm that it may identify and submit any exceptions taken to the solicitation. The Offeror must state whether it requests revisions to any of the terms and, if so, the Offeror must explain the reason(s) for the request(s) and propose alternative language. The Offeror must provide rationale in support of the exception and fully explain its impact, if any, on the performance, schedule, cost, and specific requirements of the solicitation; and relate each exception specifically to each section/paragraph and/or specific part of the solicitation to which the exception is taken. If no exceptions are taken to the solicitation, the Offeror shall submit a written statement to VRE indicating "no exceptions".

37. INSURANCE

Each Offeror must be able to demonstrate proof of the specific coverage requirements and limits applicable to this solicitation.

38. IMMIGRATION REFORM AND CONTROLACT OF 1986

By submitting a Proposal and completing the Representations and Certifications, the Contractor certifies that it does not and will not, during the performance of the Contract, employ illegal alien workers or otherwise violate the provisions of the Federal Immigration Reform and Control Act of 1986. Unauthorized alien means, with respect to the employment of an alien (which is defined as any person not a citizen or national of the United States), at a particular time, that the alien is not at that time either (a) an alien lawfully admitted for permanent residence, or (b) authorized to be so employed by the Act or by the United States Attorney General.

IV. PROPOSAL REQUIREMENTS

01. GENERAL REQUIREMENTS

A. The requirements included in this Section are purposely established to facilitate an objective, timely, and efficient evaluation by VRE. The Offeror is advised to ensure that their Proposal is in compliance with all such requirements.

B. Proposals shall include all of the requirements requested in this RFP. Failure to include all the information requested may adversely affect the evaluation. Noncompliance with the RFP requirements will affect the evaluation of the Offeror's technical and/or past performance and may be grounds to eliminate the Proposal from consideration.

C. Offerors are advised their Proposal represents their company's or team's best efforts and most complete responses to this solicitation. Assurance of experience, capability, and qualifications that clearly demonstrate and support the Offeror's claim are essential. The absence of such evidence will adversely influence evaluation of the Proposal.

D. Offerors are to submit Proposals that present the Offeror's qualifications and understanding of the overall work to be performed.

E. Proposals must provide a clear and concise response to the requirements of the solicitation.

F. The Offeror's submission of a Proposal represents that their firm will comply with all the requirements specified in this RFP.

G. Offerors must submit the required information identified in this Section as a complete Proposal package. Information in addition to that requested below will not be considered in evaluating the Proposal and shall not be provided. **Incomplete Proposals may cause the Proposal to be deemed non-responsive**.

H. Offerors are to submit Proposals that present the Offeror's qualifications and understanding of the overall work to be performed. Offerors are directed to **PART VI. - EVALUATION PROCESS AND CRITERIA** and shall respond to each factor in detail so VRE may properly evaluate the Offeror's capabilities to perform the work described in this RFP.

02. OFFEROR'S RESPONSIBILITY FOR ERRORS OR OMISSIONS IN DOCUMENTS

Each Offeror is responsible for having determined the accuracy and/or completeness of the solicitation documents, including electronic documents, upon which it relied in making its Proposal and has an affirmative obligation to notify the VRE Director of Purchasing and Contract Administration immediately upon discovery of an apparent inaccuracy or error in or omission from the solicitation

documents. If the successful Offeror is aware of such an error or omission and has not notified the VRE Director of Purchasing and Contract Administration, the Offeror must perform any work described in such incomplete or missing documents at no additional cost to VRE.

03. PROPOSAL SUBMITTAL ELEMENTS

A. All Proposals shall include the written documentation outlined below.

TAB 1- **Table of Contents:** Furnish a table of contents to delineate all the sections of the Proposal package.

TAB 2- **Title Page:** Furnish the name and address of the firm, local address, if any; name, title, address, email address, and telephone number of the *contact person* and the *company officer* responsible for ascertaining the correctness of the Proposal.

TAB 3- **Transmittal Letter (Maximum 1 page):** Submit a one-page transmittal letter dated and signed by a company officer authorized to bind the firm(s) or entity in a Contract. Failure to manually sign the letter may disqualify the Proposal. The following information shall be provided in the transmittal letter:

a. Type and size of business;

b. Years of operation; and

c. Description of the company (or other structure in the case of a partnership or joint venture), and relevance of services to this RFP.

TAB 4- **Evaluation Criteria No. 1 (Maximum 15 pages excluding resumes):**
Response to Criteria No. 1. (See Part VI. - Evaluation Process and Criteria)

TAB 5- **Evaluation Criteria No. 2 (Maximum 5 pages):**
Response to Criteria No. 2. (See Part VI. - Evaluation Process and Criteria)

TAB 6- **Evaluation Criteria No. 3 (Maximum 20 pages excluding Subcontractor Form):**
Response to Criteria No. 3. (See Part VI. - Evaluation Process and Criteria)

TAB 7- **Subcontractors:** Identify any Subcontractors and the type of work anticipated to be performed on the Contract by completing the **SUBCONTRACTOR FORM** included below.

a. During Contract performance, **ALL** Subcontractors shall be approved in advance by VRE.

b. The Offeror shall ensure lower-tier Subcontractors in support of this solicitation are in compliance with the certifications included herein, including the insurance coverage described in this solicitation and all requirements to Federal and State procurement regulations referenced herein.

TAB 8- **Acknowledge Receipt of Addenda Issued:** Include a signed acknowledgement of receipt of all addenda issued to this solicitation.

TAB 9- **Representation and Certifications:** Complete and sign forms in the **REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF BIDDERS/OFFEORS ATTACHMENT** included herein.

TAB 10- **Appendix:** Shall include full resumes for each of the Key Personnel.

B. Price will not be considered by VRE in the evaluation process. Offerors **SHALL NOT** include an estimate of man-hours or cost for services as part of their Technical Proposal. Any Offeror that submits cost information with their Technical Proposal may be deemed non-responsive.

04. SUBMISSION OF FINANCIAL STATEMENTS

A. Upon selection of the highest ranked firm, VRE will request that the firm submit copies of its financial statements. The highest ranked firm must submit, within two (2) consecutive business days of written request from VRE, one (1) USB memory device, containing one (1) continuous electronic copy of the financial statements in **PDF**. The electronic copy shall be labeled appropriately with the RFP number and title, company's name and date. **A hard copy is *not required*.** Alternatively, *due to the sensitive nature of the financial statements, the financial statements may be e-mailed to VRE's Chief Financial Officer or enclosed in an envelope addressed to VRE's Chief Financial Officer. The financial information will remain confidential and be discarded upon completion of the financial analysis*.

B. Offerors shall furnish complete financial statements for the current fiscal year (interim statements are acceptable) and the past two (2) years. The financial statements shall include the following:

1. Statement of Financial Position (Balance Sheet)
2. Results of Operation (Income Statement)
3. Statement of Cash Flow (if available)
4. Statement of Current and Retained Earnings

C. These statements (1 through 4) shall be certified indicating disclosure of all facts that could impair or affect the statements presented.

D. The term "certified" is defined to mean that an officer of the corporation includes a statement that the financial statements fairly present the financial position of the Offeror. The term "officer" is defined to mean the President, Chief Financial Officer, or Treasurer. Audited financial statements with the auditor's opinion meet this requirement. Audited statements must be submitted, if available.

E. The certified statement provided with the financial statements must read as follows:

> *"The financial information provided is correct to the best of my understanding."*

F. If audited financial statements are not available, the above statement shall also note the following:

> *"No audited statements are available for the periods reported in the accompanying information."*

G. VRE reserves the right to request additional financial information as may be required to determine the Offeror's financial responsibility. If required, a formal request shall be made by VRE to the Offeror

SUBCONTRACTOR FORM (TAB 7)

(Offerors shall make additional copies of this form.)

☐ No Subcontractors will be utilized.

A. Firm Name: _____

B. Address: _____

C. Contact: _____ Title: _____

D. Phone No.: _____ Email Address: _____

E. **Check (☑) all of the following which apply:**

☐ Small, Woman-owned and Minority-owned Business (SWaM)

*(**The SWaM certification must be attached**)

F. **Annual Gross Receipts:**
Indicate by checking (☑) the appropriate block that applies to your firm:

☐ Less than $7,500,000

☐ More than $7,500,000

G. Type of work to be performed by the Subcontractor: _____

_____

H. Location of work:_____

I. Estimated percentage of the work: _____

***NOTE**: The following certifications included herein must be attached for each Subcontractor:*

1) *Certification of Primary Participants Regarding Debarment, Suspension, and Other Ineligibility and Voluntary Exclusion*
2) *Certification of Restrictions on Lobbying*
3) *Non-Collusion Affidavit*
4) *Federal Tax Liability and Recent Felony Convictions Certification*

_____
(Prime Contractor)

V. SUBMISSION OF PROPOSAL

01. PROPOSAL FORMAT

A. Each proposal must be typed. Type size must not be smaller than Microsoft Word Times New Roman 11-point font, normal proportional spacing. Text lines must be single-spaced. Type size for custom graphics, charts, headers, footers, tables and captions must not be smaller than Microsoft Word Times New Roman 9-point font.

B. **Proposals shall not exceed the number of pages listed per tab in Section IV. 03- Proposal Submittal Elements above.** This page limit encompasses all documentation the Offeror may wish to submit to describe its organization, responsibilities, team, and Subcontractors. Tabs 7, 8 and 9 as well as the appendix for resumes (Tab 10) do not count towards the page limit.

02. PROPOSAL SUBMISSION REQUIREMENTS

A. Offerors must submit Proposals electronically through the Commonwealth of Virginia's e-procurement portal (eVA). **To submit Proposals electronically, Offerors must be registered in eVA-** www.eva.virginia.gov.

B. Proposals submitted in hard copy format or via email or facsimile will not be accepted.

C. Proposals can be submitted through eVA by:

1. Clicking on Business Opportunities, Virginia Business Opportunities (VBO).
2. Typing "Virginia Railway Express" into the Search Box.
3. Finding VRE RFP No. 026-007.
4. Clicking "View Opportunity" to select the solicitation.
5. Clicking "Respond Online" in the upper right corner of the screen.
6. Following the instructions provided online to submit a response.

D. Offerors must submit one (1) complete continuous electronic copy of the Proposal package in PDF, including all attachments.

E. Offerors requiring assistance submitting an electronic response, must contact eVA Customer Care via email at eVACustomerCare@dgs.virginia.gov or at 866-289-7367.

F. VRE is not responsible for any technical difficulties which may result in Offerors' responses not uploading in time, or responses that are not properly uploaded. Late Proposals will not be accepted.

03. PROPOSALS DUE (CLOSING DATE)

Proposals must be received by VRE at ***2:00 P.M. EST on the date specified in PART II. – PROCUREMENT SCHEDULE*** of this RFP. Proposals received after the Proposal closing date and time ***will not be considered***.

VI. EVALUATION PROCESS AND CRITERIA

01. EVALUATION PROCESS

A. A Technical Evaluation Team (TET) will review and evaluate all written Proposals based on the criteria identified in this section. VRE reserves the right to request additional information during the evaluation and selection process from any or all Offeror(s) which may be necessary to clarify their Proposals. Subsequent evaluations, such as to select firms for negotiation, may include, but are not limited to oral presentations from the highest ranked, short-listed firms. Any such subsequent evaluations will be based on the same criteria.

B. Upon selection of the highest ranked firm, VRE will request a binding Cost Proposal and begin fee negotiations. If negotiations with the top ranked firm are not successful, VRE will begin negotiations with the next most qualified, short-listed Offeror, until a Contract award can be made to the Offeror whose price is determined to be fair and reasonable. If the pool of qualified Offerors is exhausted without an agreement, the solicitation will be canceled.

02. GENERAL

Proposals will be evaluated based on the evaluation criteria as stated below. A l000-point scale will be used to create the final evaluation recommendation. When assessing points, a 1-10 scale will be utilized and multiplied by the weight assigned.

03. SCORING METHODOLOGY

The TET will review and evaluate the Proposals using the following scale:

Points	Guidance
9 - 10	**Outstanding**: Meets all of the requirements / exceeds expectations / excellent probability of success in achieving all objectives / very innovative.
6 - 8	**Above Average**: Exceeds minimum requirement / sound response / very good probability of success.
4 - 5	**Average**: Meets minimum requirement / has a reasonable probability of success.
2 - 3	**Fair**: Partially responsive / falls short of meeting basic expectations / has a low probability of success.
1	**Poor**: Inadequate / fails to meet the requirement.
0	**Failure**: No response / the information is missing altogether.

04. EVALUATION CRITERIA AND WEIGHTS

The following criteria and weighting scheme will be utilized to evaluate Proposals. The criteria are listed in descending order of importance with the first having the most weight (points) and each of the following criteria having less or equal weight (points) than the one preceding it:

Criteria No. 1- Knowledge, Qualifications and Relevant Experience of the Proposed Project Director and Key Personnel (Maximum 15 pages excluding resumes): Furnish a summary of the knowledge, prior work experience and qualifications of the proposed Project Director and Key Personnel to perform the work described in the Scope of Work. An individual whose qualifications are presented must be committed to the project and available for its duration unless otherwise approved by VRE. An organizational chart of the proposed staff is required. Each Key Personnel position shall be filled by a separate individual. No individual may be proposed to serve in more than one Key Personnel role.

a. One (1) of the proposed Key Personnel must be the designated **Project Director**, with experience managing project(s) of comparable size, scope and complexity as detailed in the Scope of Work.

1. The Project Director shall be available for a minimum commitment of ten percent (10%) throughout the duration of the Contract, equivalent to an average of four (4) hours per week, and shall be readily available in-person, by telephone, or virtual meeting, as needed, to provide executive oversight, strategic guidance, and timely resolution of project issues.

2. The Project Director's primary responsibility shall be to provide executive oversight of the CVS team and serve as the executive advisor to VRE.

3. The Project Director shall maintain organizational independence from the CM/GC Contractor and Engineer of Record (EOR) to ensure objective and unbiased cost validation throughout the LEF Project.

4. The Project Director shall serve as the senior quality assurance authority for all CVS deliverables, oversee staffing and resource allocation, resolve executive-level issues, and provide strategic guidance during cost reconciliation, risk evaluation, and GMP development and negotiations.

5. Project Director experience shall include:
   a) A minimum of fifteen (15) years of experience managing cost estimating, cost validation, project controls, or commercial management services for large, complex rail transit or heavy civil infrastructure projects.

   b) Demonstrated experience providing executive leadership for public rail transit megaprojects utilizing CM/GC, Progressive Design-Build, Design-Build, or other collaborative delivery methods.

c) Experience establishing and implementing quality management procedures for estimating and cost validation deliverables.

d) Has served in a leadership role on at least two (2) completed CM/GC and/or Progressive Design-Build projects within the past ten (10) years.

e) Experience with federally and state-funded transportation projects and an understanding of applicable funding, procurement, and compliance requirements.

f) Possession of one or more professional registrations or certifications, such as Professional Engineer (PE), Project Management Professional (PMP), Certified Cost Professional (CCP), or Design-Build Professional (DBIA), is preferred.

b. One (1) of the proposed Key Personnel must be the designated **Project Manager (PM)**, with experience managing project(s) of comparable size, scope and complexity as detailed in the Scope of Work.

1. The PM shall serve as the primary point of contact with VRE and be responsible for the overall management, coordination, quality, and delivery of all cost estimating and cost validation services. This shall include, but is not limited to the following:
   a) lead the preparation and validation of independent cost estimates at the 60 percent, 90 percent, and GMP milestones;
   b) manage all coordination with VRE;
   c) oversee project staffing and resource allocation;
   d) monitor scope development and associated cost impacts throughout design progression;
   e) ensure consistency of estimating methodologies, assumptions, and pricing across all estimate phases; and
   f) lead estimate reconciliation meetings with the Project Team.

2. Project Manager experience shall include:
   a) A minimum of ten (10) years of experience leading cost estimating and cost validation services for commuter rail, passenger rail, freight rail, or heavy civil infrastructure projects.

   b) Has served in a lead costing estimating or cost validation role for at least three (3) comparable commuter rail, passenger rail, freight rail, or heavy civil infrastructure projects completed within the past ten (10) years.

   c) Demonstrated experience leading independent quantity-based cost estimating at multiple design milestones, including 60 percent, 90 percent, and GMP estimate development and validation.

   d) Demonstrated experience managing cost estimating and validation services for public rail transit or heavy civil infrastructure projects,

including cost control, estimate reconciliation, and commercial risk evaluation.

e) Demonstrated experience leading GMP development, validation, and cost reconciliation efforts with CM/GC Contractors, including participation in at least one (1) CM/GC GMP negotiation completed within the past ten (10) years.

f) Demonstrated experience tracking scope evolution, evaluating the cost impacts of design changes, and maintaining estimate continuity throughout design development.

g) Experience managing multidisciplinary estimating teams and coordinating activities with owners, designers, contractors, and other project stakeholders.

h) Demonstrated knowledge of contractor means and methods, production-based estimating, labor productivity, construction sequencing, escalation, contingency development, and risk-based estimating.

i) Demonstrated experience facilitating collaborative estimate reconciliation workshops and resolving estimate variances through objective, data-driven analysis.

j) Proficiency with industry-standard estimating software, cost databases, and spreadsheet-based estimating tools.

k) Possession of one or more professional registrations or certifications, such as Project Management Professional (PMP), Certified Cost Professional (CCP), or Design-Build Professional (DBIA), is preferred.

c. One (1) of the proposed Key Personnel must be the designated **Lead Bridge and Rail Estimator** with experience managing project(s) of comparable size, scope and complexity as detailed in the Scope of Work.

1. The Lead Bridge and Rail Estimator shall direct the preparation of all independent quantity-based cost estimates and cost validation analyses and shall be responsible for the technical accuracy, consistency, and completeness of all estimating deliverables.

2. The Lead Bridge and Rail Estimator shall lead estimate development, estimate reconciliation meetings, quantity reviews, pricing validation, and cost risk evaluations throughout design development and GMP preparation.

3. Lead Bridge and Rail Estimator experience shall include:
   a) A minimum of ten (10) years of experience preparing contractor-style, production-based cost estimates for commuter rail, passenger rail, freight rail, or heavy civil infrastructure projects.

b) Experience supporting at least one (1) CM/GC GMP negotiation within the past ten (10) years.
c) Has served as the lead estimator for at least three (3) comparable rail or heavy civil infrastructure projects completed within the past ten (10) years.
d) Demonstrated experience estimating earthwork, grading, drainage, bridges, deep foundations, retaining walls, trackwork, special trackwork, signals, communications, utility relocations, mechanical, electrical, plumbing, architectural features, stations, platform elements, and ADA improvements is required.
e) Demonstrated knowledge of rail work windows, operating railroad constraints, flagging requirements, railroad force account work, production rates, access limitations, staging, and rail construction means and methods.
f) Experience preparing independent engineer's estimates at multiple design milestones and validating CM/GC estimates through quantity reconciliation, pricing reviews, production rate analysis, subcontractor pricing evaluation, and market assessments.
g) Experience developing labor, equipment, material, subcontractor, indirect cost, escalation, contingency, and risk pricing using industry-recognized estimating methodologies.
h) Experience leading estimate reconciliation workshops and resolving estimate variances between the Owner, Engineer of Record, and CM/GC Contractor.
i) Experience evaluating constructability, phasing, temporary works, maintenance of rail operations, and schedule impacts on construction costs.
j) Demonstrated proficiency using industry-standard estimating software, cost databases, and spreadsheet-based estimating tools.
k) Possession of estimating-related professional certifications, including Certified Cost Professional (CCP), Certified Estimating Professional (CEP), Professional Engineer (PE), or equivalent credentials, is preferred.

d. One (1) of the proposed Key Personnel must be the designated **Commercial Manager**, with demonstrated experience managing commercial management activities for projects of comparable size, scope, and complexity as detailed in the Scope of Work.

1. The Commercial Manager's primary responsibility shall be to provide commercial advisory services to VRE and support in evaluating contractor pricing, commercial terms, risk allocation, and negotiation strategies throughout design development, preconstruction services, and GMP development.

2. Commercial Manager experience shall include:
   a) A minimum of ten (10) years of experience in commercial management, cost management, contract administration, or project controls services for

large, complex rail transit, transportation, or heavy civil infrastructure projects.

b) Demonstrated experience supporting CM/GC, Progressive Design-Build, Design-Build, or other collaborative delivery methods, including open-book cost reviews, estimate reconciliation, GMP development, and commercial negotiations.

c) Demonstrated experience evaluating contractor commercial submissions, including direct costs, indirect costs, labor rates, equipment rates, subcontractor pricing, general conditions, contingency, escalation, allowances, fee structures, and other cost components associated with establishing a fair and reasonable contract price.

d) Demonstrated experience supporting at least two (2) projects involving GMP development, commercial negotiations, or contractor price validation within the past ten (10) years, with at least one (1) project involving CM/GC or Progressive Design-Build delivery.

e) Demonstrated experience evaluating contract risks, claims, disputes, requests for equitable adjustment, change orders, and other commercial issues, including the ability to identify root causes, assess entitlement and cost impacts, and support collaborative resolution strategies.

f) Demonstrated experience with federally and state-funded transportation projects and an understanding of applicable procurement requirements, funding requirements, contract provisions, and compliance obligations.

g) Possession of one or more professional registrations or certifications, such as Certified Cost Professional (CCP), Certified Construction Manager (CCM), Project Management Professional (PMP), Professional Engineer (PE), or Design-Build Professional (DBIA), is preferred.

e. One (1) of the proposed Key Personnel must be the designated **Scheduler**.

1. The Scheduler shall provide scheduling and time-related cost analysis to support independent cost validation throughout the LEF Project. The Scheduler shall review and validate the CM/GC Contractor's CPM schedules, evaluate schedule logic, sequencing, phasing, work windows, and construction durations, and assess the reasonableness of schedule assumptions affecting project cost.

2. The Scheduler shall support development and validation of the 60 percent, 90 percent, and GMP estimates by evaluating schedule-driven costs, including but not limited to: general conditions, escalation, labor productivity, equipment utilization, temporary works, and time-dependent indirect costs.

3. The Scheduler shall coordinate with the Project Manager and Lead Bridge and Rail Estimator to ensure schedule assumptions are consistent with the independent cost estimate and shall provide schedule analyses to support estimate reconciliation and GMP negotiations.

4. Scheduler experience shall include:
   a) A minimum of ten (10) years of experience developing, reviewing, or validating CPM schedules for commuter rail, passenger rail, freight rail, or heavy civil infrastructure projects is required.
   b) Demonstrated experience reviewing and validating cost-loaded CPM schedules and evaluating schedule impacts on project costs.
   c) Demonstrated experience evaluating CPM schedule logic, critical path, float, sequencing, phasing, milestones, and construction durations.
   d) Demonstrated experience evaluating railroad construction schedules.
   e) Experience assessing work windows and constructability impacts on schedule and cost.
   f) Demonstrated experience evaluating escalation assumptions, escalation modeling, inflation impacts, and schedule-driven cost exposure.
   g) Experience evaluating general conditions duration, field overhead, project staffing durations, equipment utilization, and other time-related indirect costs.
   h) Experience supporting independent cost estimates, estimate reconciliation, and GMP development by validating the CM/GC Contractor's schedule assumptions.
   i) Demonstrated knowledge of schedule risk analysis, productivity impacts, resource loading, and schedule-driven commercial risks.
   j) Proficiency with industry-standard scheduling software such as Primavera (P6).

f. Identify the required number of comparable projects as specified for **each of the Key Personnel**. Unless otherwise specified, the project must have been completed in the past ten (10) years or is currently being performed. A minimum of one (1) of the foregoing projects must have completed construction within the past ten (10) years. The projects must show the applicable skills and experience appropriate for the requirements described in the Scope of Work.

   The following information must be provided:
   1. Project name and location;
   2. Detailed project description;
   3. Similarity or relevance of work completed;
   4. Name of the Owner's representative, title, address, email address, and telephone number;
   5. Roles and responsibilities of the individual, to include notable accomplishments of the individual on the project;
   6. Dollar value of services provided; and
   7. The date the project started, the construction duration, and the actual project completion date, as compared to the planned completion date at the time of award.

No single project may exceed two (2) pages. No single page shall contain more than two (2) projects.

The Owner's representative contact person submitted by the Offeror must be someone with personal knowledge of the project and the Offeror's performance. The contact person must be informed they are being used by the Offeror as a reference and that VRE may call or email the contact person to discuss the Offeror's performance. More than one contact person can be listed; however, all must have knowledge of the specific project identified by the Offeror.

Do not list principals, officers, board members or representatives who do not have intimate knowledge of project specific information. Failure of the references to have the ability to respond to project inquiries may negatively impact the Offeror's rating for this criterion.

g. In addition to the relevant experience required above, full resumes for each of the Key Personnel shall be included as an appendix. **Resumes shall not count towards the overall page limit**. Resumes must include education, experience, certifications, background, accomplishments, copies of professional licenses/registrations and other pertinent information.

h. Personnel whose qualifications are submitted by the Offeror must be committed to the project and have availability for the duration of the Contract unless otherwise approved by VRE.

Criteria No. 2- Project Approach and Understanding (Maximum 5 pages): Furnish a clear and concise summary of the proposed project approach to properly perform the work outlined in the Scope of Work. The Offeror shall demonstrate a comprehensive understanding of the LEF Project, including its technical complexity, active railroad operating environment, stakeholder coordination requirements, phased construction, commercial risks, and the critical role of independent cost validation in supporting successful CM/GC project delivery.

The summary shall include the following:

a. Understanding of the project scope, technical requirements, and VRE's needs.

b. Describe the technical methodology and expected level of effort required to complete the project.

c. Highlight what the greatest risks are for this project delivery and the approach to mitigating those risks.

Criteria No. 3- Capability, Expertise and Past Performance of the Prime Firm and Proposed Team/Subcontractor(s) (Maximum 20 pages excluding Subcontractor Form): Describe in concise detail the capability, expertise and past performance of the Offeror and proposed Project Team/Subcontractor(s), if applicable, that demonstrates competence in performing work of similar size, scope and complexity as set forth in the Scope of Work (SOW).

Greater consideration will be given to qualifications and experience directly relevant to the successful performance of the Scope of Work, including CM/GC delivery, independent cost validation, commuter and freight rail infrastructure, and GMP development. All Subcontractors must be clearly identified as well as their roles and responsibilities. The description shall include the following:

a. Offeror shall describe its prior work experience, qualifications and past performance in providing work as described in the Scope of Work to include:

    1. Experience performing cost estimating and cost validating services for a construction project similar to that described in the Scope of Work. Experience should be representative of projects in a heavy civil or Commuter and/or Freight Rail setting.

    2. Experience supporting CM/GC and/or Progressive Design-Build projects, including estimate reconciliation, Guaranteed Maximum Price (GMP) development, cost validation, schedule validation, and commercial negotiation, which are similar to the tasks enumerated in the SOW (Section III.).

    3. Experience reviewing and validating Critical Path Method (CPM) schedules, work phasing, rail work windows, escalation, general conditions, and schedule-driven cost impacts, which are similar to the tasks enumerated in the SOW (Section III).

    4. Experience in project compliance with Federal and State funded projects and compliance with Federal, State and local regulations, codes and statutes.

b. The Offeror shall identify any Subcontractors and the type of work anticipated to be performed on the Contract; complete the **SUBCONTRACTOR FORM** included herein this RFP. List specific relevant experience and the role each is expected to play in this project to include:

    1. Experience performing cost estimating and cost validating services for a construction project similar to that described in the Scope of Work. Experience should be representative of projects in a heavy civil or Commuter and/or Freight Rail setting.

    2. Experience supporting CM/GC and/or Progressive Design-Build projects, including estimate reconciliation, GMP development, cost

validation, schedule validation, and commercial negotiation, which are similar to the tasks enumerated in the SOW (Section III.).

3. Experience reviewing and validating CPM schedules, work phasing, rail work windows, escalation, general conditions, and schedule-driven cost impacts, which are similar to the tasks enumerated in the SOW (Section III).

4. Experience in project compliance with Federal and State funded projects and compliance with Federal, State and local regulations, codes and statutes.

5. Information shall be on projects performed by each of the Offeror's Subcontractors that are considered most relevant in demonstrating their ability to support the Offeror in the effort, including rationale supporting the Offeror's assertion of relevance. At VRE's direction, any proposed Subcontractor(s) identified by the Offeror may be contacted for the purpose of determining the responsibility of the Offeror.

c. Identify any SWaM businesses and their role(s).

d. Provide specific relevant experience of the firm(s) working together on previous projects.

e. Examples of methods and procedures for quality assurance and quality control used in previous projects that improved the services provided and/or project deliverables. Additionally, the Offeror shall describe its current Quality Assurance/Quality Control (QA/QC) program, including internal peer review procedures, estimate verification processes, document quality controls, and methods for ensuring technical accuracy and consistency of all deliverables.

f. Identify five (5) projects on which comparable work has been done by the **Prime Contractor and each Subcontractor** in the past eight (8) years or is currently being performed. A minimum of one (1) of the foregoing projects must have completed construction within the past eight (8) years. If applicable, the following information must be provided:

1. Project name, location and brief description of work completed;
2. Similarity or relevance of work completed;
3. Name of the Owner's representative, title, address, email address, and telephone number;
4. Detailed project description;
5. Roles and responsibilities of the firm;
6. Dollar value of services provided;

7. The date the project started, the construction duration, and the actual project completion date, as compared to the planned completion date at the time of award; and
8. Explanation of variance between original budget, award amount, and final cost (if any).

No single project may exceed **two (2) pages.** No single page shall contain more than **two (2) projects**.

The Owner's representative contact person submitted by the Offeror must be someone with personal knowledge of the project and the Offeror's performance. The contact person must be informed they are being used by the Offeror as a reference and that VRE may call or email them to discuss the Offeror's performance. More than one contact person can be listed; however, all must have knowledge of the specific project identified by the Offeror.

Do not list principals, officers, board members or representatives who do not have intimate knowledge of project specific information. Failure of the references to have the ability to respond to project inquiries may negatively impact the Offeror's rating for this criterion.

g. A list of contracts for the Prime Contractor and all Subcontractors within the past five (5) years, if any, on which failure to complete the work within the specified time frame resulted either in the assessment of liquidated damages, penalties or contract termination.

Evaluation Criteria	Maximum Points	Weight	Maximum Score
Knowledge, Qualifications and Relevant Experience of the Proposed Project Director and Key Personnel	10	40	400
Project Approach and Understanding	10	35	350
Capability, Expertise and Past Performance of the Prime Firm and Proposed Team/Subcontractor(s)	10	25	250
TOTAL POINTS			**1000**

05. SELECTION PROCESS

A. The Technical Evaluation Team will review the Proposals using written score sheets. Proposals will be evaluated based on the evaluation criteria as stated above.

B. Offerors will be in ranked order according to the scores of the TET and a short list of the most qualified Offeror(s) will be created. Selection shall be made of one (1) short-listed Offeror deemed to be the best for the project on the basis of the evaluation factors.

06. INTERVIEWS (OPTIONAL)

A. VRE reserves the right to conduct oral interviews with short-listed firms, based on the results of the TET, prior to making a selection. ***The date and time for interviews is specified in PART II. – PROCUREMENT SCHEDULE*** of this RFP and shall be reserved for possible interviews. Interviews will be held via video conference or at the VRE Offices located at 1500 King Street, Suite 202, Alexandria, Virginia 22314.

B. The interview will provide an opportunity for Offeror(s) to clarify their Proposal in response to questions from the TET. This is a fact-finding and explanation session only and does not include negotiations.

C. As interviews are *optional* for VRE, Offerors must treat their Proposals as a final product.

D. Upon selection of the most technically qualified Offeror, VRE shall commence negotiations.

07. NEGOTIATIONS

A. VRE will request the selected Offeror to submit a binding Cost Proposal. Negotiations shall commence with the selected Offeror to achieve a binding price and agreement on Contract terms. If negotiations with the top-ranked Offeror are not successful, discussions will commence with the next highest ranked short-listed Offeror, and negotiations will continue in this manner until an agreement is reached.

B. Successful negotiation of the selected Offeror's labor, overhead, and fee rates will result in a Contract.

VII. CONTRACT AWARD/EXECUTION

01. GENERAL

VRE may cancel this RFP or reject Proposals at any time prior to an award and is not required to furnish a statement of the reason why a particular Proposal was not deemed to be the most advantageous (Code of Virginia, § 2.2-4359D).

02. TYPE OF CONTRACT

VRE contemplates award of a firm-fixed price Contract from this solicitation.

03. AWARD DOCUMENTS

The award document will be a Contract incorporating by reference the Request for Proposals, Special Provisions, General Provisions, Scope of Work/Services and the Contractor's Proposal as negotiated.

04. NOTICE OF INTENT TO AWARD

VRE will post the "Notice of Intent to Award" on its website at www.vre.org, for a minimum of ten (10) calendar days. The "Notice of Intent to Award" shall not be construed as a "Notice-To-Proceed (NTP)."

05. NOTICE OF AWARD

A "Notice of Award" will be posted on VRE's website at www.vre.org. The successful Offeror will also be notified in writing by VRE.

06. PROTEST OF AWARD

A. An Offeror wishing to protest an award or a decision to award a Contract must submit the protest, in writing, to the VRE Director of Purchasing and Contract Administration no later than ten (10) calendar days after either the decision to award or the award, whichever occurs first. The protest must include the basis for the protest and the relief sought. Within ten (10) calendar days after receipt of the protest, the Chief Executive Officer of VRE will issue a written decision stating the reasons for the action taken. This decision is final. Further action, by an Offeror, may be taken by instituting action as provided by the Code of Virginia.

B. VRE policy and procedure for the administrative resolution of protests is set forth in §3.8 of the Public Procurement Policy and Procedures Manual (Procurement Manual). The Procurement Manual contains rules for the filing and administration of protests. The Contract Administrator shall furnish a copy of §3.8 upon request. Chapter III, Section 7 of the Federal Transit Administration (FTA) Circular 4220.1G addresses protests where Federal funds are involved.

C. If the project is funded in whole or in part by grants from the Federal Transit Administration (FTA), FTA will only review protests regarding the alleged failure of VRE to have written protest procedures; an alleged failure to follow those procedures; or violation of Federal law or regulation. A protestor must exhaust all administrative remedies with VRE before pursuing a protest with FTA. Any party

wishing to file a protest with the FTA should do so no later than five (5) calendar days after a final decision is rendered under VRE's protest procedure.

D. VRE may proceed with award of the Contract and Notice-To-Proceed while a protest is pending if it is determined to be in VRE's best interest to do so.

07. DELAYS IN AWARD

Delays in award of a Contract, beyond the anticipated starting date, may result in a change in the Contract period indicated in the solicitation. If this situation occurs, VRE reserves the right to award a Contract covering the period equal to or less than the initial term indicated in the solicitation.

08. AWARD FOR ALL OR PART

Unless otherwise specified, VRE may, if it is in the best interest of VRE to do so, award all or part of the Proposal to any Contractor whose offer is the most responsible and responsive and whose Proposal best meets the requirements and criteria set forth in the solicitation.

09. CONTRACT DOCUMENTS

A. The successful Offeror shall execute and deliver the following Contract documents to VRE:

1. Signed Contract
2. Insurance Certificates
3. Form W-9 Request for Taxpayer Identification Number and Certification

B. The aforementioned documents must be submitted to VRE not later than ten (10) calendar days after receipt of the Contract and "Notice of Intent to Award."

C. The Contract shall be in writing. The Contractor shall execute the Contract in the number of copies required by VRE. One (1) fully executed original shall be delivered to the Contractor.

10. FAILURE TO EXECUTE CONTRACT

Should the successful Offeror fail to execute the Contract within ten (10) calendar days after receipt and/or fail to submit the required Insurance Certificates, VRE may at its option, determine that the Offeror has abandoned the Contract, and thereupon, the Proposal and acceptance shall be null and void. VRE may also seek all available remedies at law and equity.

11. NOTICE-TO-PROCEED (NTP)

A "Notice-To-Proceed" (NTP) will be issued separately at a time subsequent to execution of the Contract. Contract performance shall begin on the date set forth in the written NTP. The NTP shall start the time for which the Contractor is responsible for completion of the project.

VIII. SPECIAL PROVISIONS

01. SIGNATURES

All documents to be delivered pursuant to this solicitation, requiring a signature, may be executed via handwritten (manual), stamped, electronic (portable document format), photocopied, digital or scanned signature. A signed copy of the documents transmitted by any of the means listed above shall be deemed to have the same legal effect as delivery of an original executed copy.

IX. GENERAL PROVISIONS

01. PRECEDENCE OF TERMS

A. In the event of an inconsistency between the Request for Proposals or Invitation for Bids, the Contract Terms and Conditions, other included documents, or the Federal Transit Administration (FTA) Master Agreement and state procurement law, the inconsistency shall be resolved by the following order of precedence:

1. Federal Transit Administration Master Agreement (34) (November 26, 2025) and FTA Circular 4220.1G, dated January 17, 2025, as amended;
2. Virginia's Public Procurement Act, as amended;
3. Invitation for Bids (IFB)/Request for Proposals (RFP);
4. Special Provisions;
5. General Provisions; and
6. Contractor's Bid/Proposal.

B. Where the terms of these Contract Documents vary the most stringent shall apply.

02. VRE CONTRACT MANAGEMENT

A. Contract Administrator: During the term of the Contract, matters relating to bonding, insurance, terms and conditions, and other contract administration matters shall be directed to the Contract Administrator. Changes to the Contract value, scope, or schedule will require consultation with the Contract Administrator.

B. Contracting Officer: The Contracting Officer is the only individual who can legally commit or obligate VRE for the expenditure of federal/public funds. The technical administration of the Contract shall not be construed to authorize the revision of the terms and conditions of the Contract. Any such revision shall be authorized in writing only by the Contracting Officer. The Contracting Officer may designate personnel to act as their authorized representatives for one or more contract administration functions not involving a change in the scope, price, terms, or conditions of the Contract. Such designation will be in writing, set forth by a separate letter signed by the Contracting Officer, and will contain specific instructions as to the extent to which the representative may take action for the Contracting Officer. Such designation will not contain authority to sign contractual documents, nor will it authorize the designee to order contract changes, modify contract terms, or create any liability on the part of VRE.

C. Project Manager: During the term of the Contract, the Contracting Officer may designate a Project Manager (PM) to represent VRE and assist in monitoring the work under the Contract. The PM is responsible for the overall project management and serves as the technical liaison to the Contractor. The PM is responsible for the day-to-day clarification and guidance of the Contractor's personnel as may be required under the Contract. The VRE Project Manager will conduct ongoing reviews of the Contractor's progress in performing the work and will furnish comments in a timely manner. Only the PM consulting with the Contract Administrator and/or the Contracting Officer, as necessary, is authorized to provide

direction to the Contractor. All communications to other agencies shall be through the VRE Project Manager, unless directed otherwise.

03. PRIME CONTRACTOR RESPONSIBILITIES

A. The Contractor shall be responsible for completely supervising and directing the work under this Contract and all Subcontractor(s) that it may utilize, using adequate skill and attention. Subcontractor(s) who perform work under this Contract shall be responsible to the Prime Contractor.

B. During the period of performance, the Contractor shall not substitute key personnel without the written approval of VRE. The Contractor shall provide VRE with information as to the circumstances necessitating the proposed change and other information as requested. Periodically, the VRE Project Manager may request an updated list of personnel.

C. The Contractor agrees that it is fully responsible for the acts and omissions of its Subcontractor(s) and of persons employed by the Subcontractor as it is for the acts and omissions of its own employees.

D. The VRE Project Manager shall coordinate the work on this Contract with VRE's ongoing operations and other activities performed by VRE or other contractors.

04. STANDARD OF CARE

A. VRE is entering into this Contract in reliance on the Contractor's experience and abilities with respect to performing the services hereunder. In performing the work, the Contractor shall ensure that it and its agents and employees exercise the degree of skill and care that is normally accepted by members of the same profession currently practicing under similar conditions in the same locality ("Customary Standard of Care"). The Contractor shall re-perform, without additional compensation, any services not meeting this Customary Standard of Care.

B. The Contractor shall be responsible for the professional quality, completeness, technical accuracy and coordination of all services or materials provided, regardless of whether they are prepared by them or their subcontractor.

C. The Contractor is responsible for all costs and expenses incurred by VRE, including increased construction costs, when such costs and expenses are the result of any violation of this Standard of Care provision. VRE's review, approval or acceptance of or payment for any services required under this Contract does not release the Contractor from any liability for breach of this Standard of Care provision.

05. CONFORMITY WITH SCOPE OF WORK

All deviations from the Scope of Work shall be authorized in writing by VRE. No extra compensation for material or labor shall be allowed for work evidently necessary within the general intent of the Scope of Work.

06. TERM OF CONTRACT

The Contract shall have a base term of **fifteen (15) consecutive calendar months** from the date set forth in the written Notice-To-Proceed (NTP). At VRE's sole discretion, the Contract may be extended for an optional period (Construction Phase Services) of **thirty-six (36) consecutive calendar months**. Exercise of the optional period shall be subject to project needs and funding availability.

The total Contract term, including the optional period, shall not exceed **fifty-one (51) consecutive calendar months** from the date of the Notice to Proceed.

07. LABOR RATES

The Contract shall contain labor rates on a manhour basis for various disciplines. Each rate shall include direct costs, overhead, General and Administrative expenses (G&A), and profit. (The number and type of disciplines are subject to final determination during negotiations with the selected Contractor). Rates will remain fixed for the term of the Contract. At VRE's discretion, labor rates may be adjusted should the term of the Contract be extended over one (1) year.

08. PAYMENTS

A. ***Payments Under Fixed Price Cost Estimating and Cost Validation Contracts***

Payments shall be made monthly for the amount and value of the work and services performed by the Contractor under this Contract. Payment applications shall be prepared by the Contractor and accompanied by all supporting data required by the VRE Project Manager.

B. ***Terms***

1. The Contractor shall submit monthly invoices for work/goods ordered, delivered, and accepted by VRE by the 15th of each month. ***The invoice period shall be the calendar month.*** This payment schedule shall be maintained throughout the duration of the project, unless directed otherwise.

2. If no charges have been incurred for a particular month, no invoice is required. However, the VRE Project Manager shall be notified that no invoice will be submitted.

3. Any Contractor's payment terms requiring payment in less than thirty (30) days will be regarded as requiring payment thirty (30) days after invoice or delivery, whichever occurs last. This shall not affect offers of discounts for payment in less than thirty (30) days.

4. If funds are not appropriated for purposes of the Contract for the current or any succeeding fiscal year subsequent to the one in which the Contract is entered into, then VRE may terminate the Contract upon prior written notice to the Contractor. Should termination be accomplished in accordance with this Section, VRE shall be liable only for payments due through the date of termination.

C. ***Billing Instructions***

1. Invoices shall be submitted electronically in one (1) continuous electronic copy in PDF in Trimble Unity Construct, VRE's Project Management Information System.
2. The VRE Project Manager shall be indicated on the invoice cover sheet.
3. At a minimum, invoices shall contain the following information:
   a. Name, address and telephone number of Contractor
   b. VRE Contract number
   c. Contractor's invoice number
   d. Sequential invoice number for the project
   e. Date of invoice
   f. Period of invoice
   g. Summary description of work performed
   h. Percentage of the scope of work complete
   i. Percentage of the budget complete
   j. Breakdown of invoice amount by Prime Contractor and Subcontractor
   k. Total invoice amount
   l. Total cumulative amount invoiced
   m. Contractor's signature
4. If invoices fail to meet all of the above requirements, they will not be processed for payment and will result in the invoice being returned to the Contractor for correction and resubmission. VRE may request additional substantiating documentation as necessary.

D. ***Progress Payments***

1. Payments shall be made monthly for the amount and value of work and services performed by the Contractor under this Contract. Progress payments will only be made for work that has been delivered and which VRE has approved and accepted.
2. Payment applications shall be prepared by the Contractor and accompanied by any supporting data, to include a detailed progress report, required by the Project Manager. With advance VRE approval, progress payments may be authorized based on a set of milestones for work not specifically resulting in deliverable products. VRE may require substantiating information such as Contractor's Affidavit of Payments, Subcontractor's Affidavit of Payments, invoices, etc.

E. ***Final Payment***

1. Final payment is dependent on completion of the work and submission of the Contract deliverables. This approval will constitute a representation that, to the best of VRE's knowledge, information and belief, and on the basis of observations and inspections, the work has been completed in accordance with the terms and conditions of the Contract documents and that the entire balance is found to be due to the Contractor.
2. The final payment shall be made after the Contractor submits the following to VRE:

    a. An affidavit that all payrolls, bills for materials and equipment, and other indebtedness connected with the work for which VRE or VRE's property might be in any way responsible, have been paid or otherwise satisfied.

    b. If required by VRE, other data establishing payment or satisfaction of all such obligations, such as receipts, releases and waivers of liens arising out of the Contract, to the extent and in such form as may be designated by VRE.

3. All provisions in this Contract, including without limitation those establishing obligations and procedures, shall remain in full force and effect, notwithstanding the making or acceptance of final payment prior to the date of completion of the project.

09. PAYMENTS TO SUBCONTRACTOR

In the event that the Contractor utilizes a Subcontractor for any portion of the work under this Contract, the Contractor hereby agrees to:

1. Provide payment of Subcontractors within seven (7) days of receipt of payment by VRE for work completed and approved expenses. The Contractor shall take one (1) of the two (2) following actions within seven (7) days after receipt of amounts paid to the Contractor by VRE for work performed by a Subcontractor under the Contract.

    a. Pay a Subcontractor for the proportionate share of the total payment received from VRE attributable to the work performed and completed by that Subcontractor under the Contract; or

    b. Notify VRE and any Subcontractors, in writing, of its intention to withhold all or a part of the Subcontractor's payment with the reason for nonpayment.

2. The Contractor shall be obligated to pay interest to a Subcontractor on all monies owed by the Contractor that remain unpaid after seven (7) days following receipt by the Contractor of payment from VRE for work performed by a Subcontractor under the Contract, except for amounts withheld under subsection 1.b. of this Section. Unless otherwise provided under the terms of

this Contract, interest shall accrue at the rate of one percent (1%) per month. The date of mailing of any payment by U. S. Mail is deemed to be payment to the addressee. These provisions apply to each sub-tier contractor performing under the primary Contract.

3. The Contractor's obligation to pay an interest charge to a Subcontractor pursuant to the provisions of this Section may not be construed as an obligation by VRE. A contract modification may not be made for the purpose of providing reimbursement for any such interest charge. A cost reimbursement claim may not include any amount for reimbursement for such interest charge.

10. TRAVEL EXPENSES

A. VRE will not reimburse the Contractor for travel-related expenses for employees located within the greater Baltimore-Washington Metropolitan Area, as defined by the United States Office of Management and Budget.

B. VRE will compensate the Contractor for Reimbursable Expenses, for employees located outside of this area, and only if they are pre-approved by VRE and in accordance with the Contract. **When authorized by the Project Manager**, expenses may include:

1. **Lodging/Meals/Incidental Expenses:**
   a. Each Contractor required to travel overnight in the performance of this Contract shall be reimbursed for lodging, meals and incidental expenses at the rates specified by the U.S. General Services Administration (GSA) (http://www.gsa.gov – search "Per Diem") for the locations being visited.

   b. **Lodging**: VRE will reimburse for actual lodging costs at a reasonably priced commercial facility in the immediate area of where the work is performed, up to the GSA's daily rates for the destination, current for the date of travel. Receipts for lodging must be itemized. Only room and tax charges will be reimbursed; no reimbursement will be made for additional expenses, including but not limited to, room service, laundry, telephone and in-room movies. If the Contractor or its employee shares a room with another person who is not connected with the performance of the work, including a spouse, VRE will reimburse for only the cost of a single room.

   c. **Meals**: The amount for meals and incidental expenses includes state sales tax (where applicable) and a 15% gratuity. On the day of departure, 75% of the applicable rate will apply. On the last day of travel, 75% of the applicable rate will apply.

2. **Air Travel:**
   VRE shall reimburse for air travel at the coach rate. The Contractor is expected to obtain discount airfares to the extent possible. Travel shall be by the route that is most cost effective to VRE. Tickets must be purchased at least seven (7) calendar days in advance, unless otherwise approved by VRE. The Contractor shall bear any additional costs incurred as a result of deviations from this route

for personal reasons. Travel time shall not be compensated. Legible receipts are required.

3. **Local Transportation:**
   Reservations must be made in advance whenever possible to take advantage of all available discounts.

   a. **Taxi/limousine/bus** – Reasonable expenses reimbursable at **actual cost.** Receipts are required. Transportation expenses between places of lodging or business and places where meals are taken are not allowed unless suitable meals cannot be obtained at the site.

   b. **Rental automobiles** – Reasonable expenses reimbursable at actual cost. Rental automobiles shall be used only when it will affect a savings or other advantage or when the use of other transportation is not feasible. Rental automobiles should be limited to sub-compact models when available. A legible copy of the rental agreement is required to support costs. Rental of other than a sub-compact is allowable when sub-compacts are not available. Any reimbursement will cover only those rental charges, insurance and/or fuel fees allocable to work on the Contract and will not cover the purchase of liability insurance and/or collision/comprehensive insurance. Legible receipts are required.

   c. **Private automobile** - Use of private automobiles will be reimbursed at the current U.S. Internal Revenue Service (IRS) business mileage rate.

   d. Tolls and parking charged for the use of ferries, roads, bridges, and tunnels while traveling to and from commercial carriers and parking charges at destination are reimbursable at actual cost. Legible receipts are required.

4. **Telephone**:
   Actual cost of business telephone charges incurred by the Contractor while in travel status is reimbursable. Personal telephone charges are not allowable. Legible receipts are required.

5. **Other:**
   a. Other actual expenses incurred in the performance of this Contract, exclusive of normal operating expenses, and as approved by VRE, shall be reimbursed. Receipts or invoices are required on each individual item under this category.

   b. **Non-reimbursable costs** include expense for entertainment, first-class airfare, contributions, personal telephone and facsimile charges, dues and subscriptions, alcoholic beverages, expenses for transportation and lodging for personal pursuits, gifts, gratuities, and other charges expressly disallowed under the terms of this Contract.

6. **Exclusions:**
VRE will not reimburse or pay for expenses that are personal in nature. The following are some examples of expenses excluded from reimbursement:

a. Alcoholic beverages
b. Personal phone calls
c. Entertainment (e.g. pay TV, movies, night clubs, health clubs, theaters, bowling)
d. Personal expenses (e.g. laundry, valet, haircuts)
e. Personal travel insurance (e.g. life, medical, or property insurance) for airfare or rental cars
f. Fines for parking or traffic violations
g. Auto repairs, maintenance, cleaning, inspection and insurance costs for personal vehicles

Reimbursable expenses must be included on each monthly invoice and require receipts and other documentation.

Time limit: VRE will not honor requests for travel reimbursement that are submitted more than sixty (60) calendar days after completion of travel.

11. EXTRA CHARGES NOT ALLOWED

Unless otherwise provided in the Contract, the Contract price shall be for the complete installation ready for VRE use and shall include all applicable freight and installation charges; extra charges will not be allowed.

12. PREPARATION OF SPECIFICATIONS AND COORDINATION WITH CONTRACT DOCUMENTS

A. The Contractor's documents shall be coordinated with VRE's procurement requirements, including change orders (modifications). The Contractor's documents shall not contain statements or requirements which conflict with or unnecessarily duplicate the provisions of VRE's procurement documents.

B. The Contractor shall make reference to applicable Federal specifications, if available, for items and materials used. If Federal specifications are not available, the Contractor shall reference specifications prepared by recognized professional manufacturers or construction societies or furnish descriptions of the items or materials containing all the salient characteristics of function, performance, design requirements and quality of the item described. When an item or material cannot be described because of its technical construction or composition or because it is a proprietary item, the manufacturer and model number of one, and if available, several suitable commercial products shall be included as part of the required description, followed by the words "or approved equal".

C. If it is determined that one and only one brand of item or material will meet the requirement, the Contractor shall so state and shall give full justification for that determination. Specifications shall not duplicate, contradict or cover the same subject matter contained in the general and special provisions to be used with the

contract. A complete set of contract general and special provisions will be furnished to the Contractor by VRE.

13. CONSTRUCTION CONTRACTS WITH COST ESTIMATING OR COST VALIDATION FIRMS

No contract for construction of any project or item for which cost estimating and cost validation services are provided under this Contract shall be awarded to the Contractor, any of its Subcontractors, or any of its subsidiaries or affiliates.

14. REGULATORY COMPLIANCE WITH LAWS AND PERMITS

A. The Contractor agrees it shall be responsible for ensuring that the General Contractor performs its work in accordance with all applicable Federal, State and Local Laws, Rules and Regulations including building codes. In addition to the requirements described in the preceding Sections and the Scope of Work, any additional regulatory compliance required by the United States Department of Transportation and/or the Environmental Protection Agency shall be complied with during the term of the Contract.

B. Neither VRE's review, approval or acceptance of, nor payment for, the services required under this Contract shall be construed as a waiver of any rights under this Contract or of any cause of action arising out of the performance of this Contract, and the Contractor shall be and remain liable to VRE in accordance with applicable law for all damages to VRE caused by the Contractor's negligent performance of any of the services furnished under this Contract.

C. If the Contractor is comprised of more than one legal entity, each such entity shall be jointly and severally liable hereunder.

D. The rights and remedies of VRE provided for under this Contract are in addition to any other rights and remedies provided by law.

15. RELEASES, LICENSES, PERMITS AND AUTHORIZATIONS

It is the Contractor's responsibility to obtain all releases, licenses, permits and other usage authorizations for all matters within its ordinary sphere of activity, including photographs, copyrighted materials, artwork or any other property or rights belonging to third parties obtained by the Contractor for use in performing services for VRE. The Contractor shall save the VRE harmless from all claims, demands, expenses (including reasonable attorney's fees), liabilities, suits, and proceedings (including any brought in or before any court, administrative body, arbitration panel or other tribunal) against or involving VRE on account of or arising out of such use. VRE shall obtain the same for any such items obtained by VRE which are used by the Contractor in performing services for VRE. The Contractor shall save VRE harmless from all claims, demands, expenses (including reasonable attorneys' fees), liabilities, suits, and proceeding (including any brought in or before any court, administrative body, arbitration panel or other tribunal) against or involving VRE on account of or arising out of any assertions, claims, slogans, headlines or the like made by the Contractor for any VRE products, as well as for all claims, demands,

expenses, liabilities, suits and proceedings arising out of the nature or use of VRE's products by the Contractor.

16. OWNERSHIP OF WORK PRODUCTS

A. This Contract does not confer on the Contractor any ownership rights or rights to use or disclose VRE's data or inputs. VRE shall have unlimited rights, for the benefit of VRE, in all work products including, but not limited to, drawings, designs, specifications, notes and other work developed in the performance of this Contract. VRE shall have the right to use the work products on any other VRE work without additional cost to VRE.

B. All work products, in any form, that result from this Contract are the property of VRE and must be provided or returned to VRE upon completion, termination, or cancellation of this Contract. The Contractor shall not use or allow others to use the work products for any purpose other than performance of this Contract without the written consent of VRE.

C. The work products are confidential, and the Contractor may neither release the work products nor share their contents. The Contractor shall refer all inquiries regarding the status of any work product to the VRE Project Manager or to his or her designee. At VRE 's request, the Contractor shall deliver all work products, including hard copies of electronic files, to the VRE Project Manager.

D. The Contractor must include the provisions of this Section as part of any contract or agreement related to this Contract into which it enters with Subcontractors or other third parties.

E. If any invention, improvement, or discovery of the Contractor or any of its Subcontractors or lower-tier subcontractors is conceived or first actually reduced to practice in the course of or under the Contract, and that invention, improvement, or discovery is patentable under the laws of the United States of America or any foreign country, VRE and the Contractor agree to take actions necessary to provide immediate notice and a detailed report to the party at a higher tier until all applicable VRE funding partners are ultimately notified.

F. The provisions of this Section will survive any termination or cancellation of this Contract.

17. CONFIDENTIAL INFORMATION

A. The Contractor and its employees, agents and Subcontractors shall hold as confidential all VRE information obtained under this Contract. Confidential information includes, but is not limited to, non-public personal information; social security numbers; addresses; dates of birth; other contact information or medical information about a person; and information pertaining to products, operations, systems, customers, prospective customers, techniques, intentions, processes, plans and expertise.

B. The Contractor must take reasonable measures to ensure that all of its employees, agents and Subcontractors are informed of and abide by this requirement.

18. DISSEMINATION OF CONTRACT INFORMATION

A. The Contractor shall not discuss, publish, permit to be published, or distribute for public consumption, and information, oral or written, or any material concerning this Contract, without the prior written consent of VRE.

B. When required, the Contractor shall prepare amendments or revisions to the drawings, specifications, and VRE cost estimates.

19. CHANGES

A. By written notice to the Contractor, VRE may from time to time make changes within the general scope of the Contract in the services to be provided by the Contractor, the method or place of delivery, or the place of performance. Changes may also be made by mutual agreement between the parties in writing. The Contractor shall promptly comply with the notice and shall perform all services in conformity to the notice.

B. If any such changes cause an increase or decrease in the Contractor's cost of performance or the time required for performance, an equitable adjustment in the Contract price and/or the time allowed for performance of the Contract shall be negotiated and the Contract modified accordingly. Any claim by the Contractor for adjustment under this clause must be asserted by written notice to VRE within thirty (30) days from the date of receipt by the Contractor of the change notice. If the parties fail to agree to an adjustment, the question of an increase or decrease in the Contract price or time allowed for performance shall be resolved in accordance with the procedures for resolving disputes provided by the disputes clause of the Contract. Neither the existence of a claim, a dispute, submission of the dispute or the dispute resolution process, litigation or any portion of this provision or changes shall excuse the Contractor from promptly proceeding with the performance of the Contract as changed by the notice.

20. FORCE MAJEURE

A. When delay occurs due to reasonable causes beyond the control of the Contractor, including but not limited to, acts of God, acts of national, state or local government or any governmental agency, war or war conditions, riot or civil conditions, sabotage, strikes, lockouts, pandemic, accident, fire, flood, typhoons, hurricanes, explosion, damage to equipment or facilities, the time for performance and completion of work may be adjusted and extended as required to accommodate those delays and their effect.

B. VRE shall not be held responsible for failure to perform its duties and responsibilities imposed by the Contract if such failure is due to acts of God, acts of national, state or local government or any governmental agency, war or war conditions, riot or civil conditions, sabotage, strikes, lockouts, pandemic, accident, fire, flood, typhoons, hurricanes, explosion, damage to equipment or facilities beyond the control of VRE that make performance impossible or illegal, unless otherwise specified in the Contract.

21. DELAYS

A. Upon written receipt of a request and justification for an extension from the Contractor, the VRE Contracting Officer may extend the time for performance of the Contract or delivery of work specified herein at the VRE Contracting Officer's sole discretion for good cause shown. Under no circumstances will VRE be responsible for consequential costs associated with delays.

B. The Contractor shall use reasonable diligence to remove or overcome any such causes as expeditiously as possible.

22. SUBCONTRACTING

A. No portion of the work shall be subcontracted without the prior written consent of VRE. In the event the Contractor desires to subcontract part of the work specified herein, the Contractor shall submit with its Proposal, a list of the Subcontractor(s) and their names, required certifications, qualifications, experience, project assignment and contact information.

B. The Contractor shall be responsible for completely supervising and directing the work under this Contract and all Subcontractors that it may utilize, using its best skill and attention. Subcontractors who perform work under this Contract shall be responsible to the Prime Contractor. The Contractor agrees that it is as fully responsible for the acts and omissions of its Subcontractors and of persons employed by each Subcontractor as it is for the acts and omissions of its own employees.

C. Any Subcontractor and outside associates or consultants required by the Contractor in connection with the services covered by the Contract will be limited to individuals or firms that were specifically identified and agreed to during negotiations. The Contractor shall obtain the Contracting Officer's written consent before making any substitution or addition to these Subcontractors, associates, or consultants.

D. During the period of performance, the Contractor shall not substitute Subcontractor(s) and/or the Subcontractors' key personnel without the prior written approval of VRE. Any new Subcontractor(s) must be identified as per the above paragraph. The Contractor shall provide VRE with information as to the circumstances necessitating the proposed change and other information as requested.

E. The Contractor shall notify VRE within five (5) calendar days after the occurrence of any of these events and provide information as to the circumstances necessitating the proposed change, the new Subcontractor information and other information as requested. Proposed substitutions must have comparable qualifications and experience to those being replaced. VRE will notify the Contractor within ten (10) calendar days after the receipt of all required information if this change is approved. VRE and the Contractor shall subsequently amend the required Contract documents.

F. VRE reserves the right to request from the Contractor during the solicitation process and any time during Contract performance, additional information about a Subcontractor proposed by the Contractor, that VRE deems necessary to evaluate the qualifications of the Subcontractor.

G. The Contractor shall, however, remain fully liable and responsible for the work to be done by its Subcontractor(s) and their subcontractor(s) and shall assure compliance with all requirements of the Contract.

H. The Contractor agrees to require its Subcontractors and sub-subcontractors to include adequate provisions to ensure compliance with applicable Federal requirements in each subcontract and sub-subcontract. Furthermore, the Contractor agrees to include appropriate clauses in each subcontract stating the Subcontractor's responsibilities under Federal law, regulation, and directive, including any necessary provisions requiring the Subcontractor to extend applicable requirements to its subcontractors to the lowest tier necessary.

23. KEY PERSONNEL

A. Certain skilled, experienced, professional and/or technical personnel are essential for successful accomplishment of the work to be performed under the Contract. These are defined as "Key Personnel" and are those persons whose resumes were submitted for approval as part of the Technical Proposal for evaluation. No substitutions may be made except in accordance with this clause.

1. Key personnel are defined as follows:
   a. Personnel identified in the Bid/Proposal as key individuals to be assigned for participation of the Contract;
   b. Personnel whose resumes were submitted and approved by VRE; or
   c. Individuals who are designated as key personnel by VRE.

B. The Contractor understands that no Key Personnel substitutions will be permitted unless these substitutions are unavoidable because of sudden illness, death or termination of employment. In any of these events, the Contractor shall promptly notify the VRE Director of Purchasing and Contract Administration and provide the information described in Paragraph D. below.

C. The Contractor must submit to the VRE Director of Purchasing and Contract Administration all proposed substitutions, in writing, at least fifteen (15) calendar days in advance and provide the information required by Paragraph D. below.

D. Any request for substitution must include a detailed explanation of the circumstances necessitating the proposed substitution, a resume for the proposed substitute, and any other information requested by the VRE Director of Purchasing and Contract Administration. Any proposed substitute must have qualifications equal to or superior to the qualifications of the incumbent. VRE will evaluate such requests and promptly notify the Contractor in writing of its approval or

disapproval. If disapproved, VRE may, in its sole discretion, permit the Contractor to promptly submit an alternate substitution.

E. The provisions of this Section shall be applicable to any subcontract which may be entered into.

F. In the event that any of the identified Key Personnel cease to perform under the Contract and the substitute is disapproved, the Contract may be immediately terminated in accordance with the Termination for Default provision of the Contract.

24. INDEPENDENT CONTRACTOR

The Contractor is and shall be in all events, an independent contractor. Nothing herein shall be construed as constituting the Contractor as an agent, partner, employee, or legal representative of VRE for any purpose. Neither the Contractor nor its employees shall be entitled to or be eligible to participate in any benefits, privileges or plans given by or established for the benefit of VRE or its employees.

25. NOTIFICATION OF OWNERSHIP CHANGES

The Contractor shall notify VRE in writing when the Contractor becomes aware that a change in its ownership is certain to occur. The Contractor shall also include this provision in all subcontracts under this Contract, requiring each s Subcontractor to notify VRE in writing when the Subcontractor becomes aware that a change in its ownership is certain to occur.

26. AVAILABILITY OF FUNDS

It is understood and agreed that VRE shall be bound to the Contract only to the extent of the funds appropriated for the purpose of the Contract. If funds are reduced or eliminated by the Commonwealth of Virginia or any Federal, State or Local funding partners, the Contract can be terminated under the provisions of the Contract.

27. AUTHORIZED FUNDING

A. If at any time the Contractor has reason to believe that the costs to VRE which will accrue in the performance of the Contract in the next succeeding thirty (30) days, when added to all other payments previously accrued, will exceed seventy-five percent (75%) of the then current total authorized funding, the Contractor shall notify VRE to that effect, advising the estimate of additional funds required for completion of the Contract. The Contractor shall be under no obligation to perform any work hereunder, and VRE shall not be obligated to reimburse the Contractor for any work performed, if in the performance thereof the total funding then allotted to the Contract will be exceeded.

B. VRE shall not be obligated to pay the Contractor any amount in excess of the ceiling price reflected in the Contract, and the Contractor shall not be obligated to continue performance if to do so would exceed the price set forth in the Contract, unless and until the VRE Contracting Officer shall have notified the Contractor in writing that the price(s) have been increased and shall have specified in the notice a revised

price that shall constitute the price for performance under this Contract, and the Contract has been duly modified. When and to the extent that the price set forth in the Task Order or Contract has been increased, any hours expended and material costs incurred by the Contractor in excess of the price before the increase shall be allowable to the same extent as if the hours expended and material costs had been incurred after the increase in the price.

28. ASSIGNMENT OF CONTRACT

The Contract shall not be assignable, sublet or transferable by the Contractor, in whole or part, without the prior written consent of the VRE.

29. LEGAL SERVICES

VRE legal services are provided by VRE's general counsel and counsel retained directly by VRE. Absent written direction from VRE, Contractors are not permitted to include on their team, or among their key personnel, as Subcontractor(s) or employees of the Contractor, law firms or attorneys primarily engaged in the practice of law in any state regardless of the qualifications of the firm or the attorneys. This policy does not apply to individuals employed or subcontracted by the Contractor who possess a juris doctorate, but are not licensed to practice law in any state or who are no longer engaged in the practice of law.

30. DISALLOWED COSTS INCLUDING INTEREST

A. The Contractor agrees to remit to VRE, which in turn will remit to its funding partners, any excess payments made to the Contractor disallowed by Federal, State and Local funding partners.

B. VRE will exclude any project costs incurred by the Contractor before the date of the Notice-To-Proceed unless otherwise authorized by VRE in writing. VRE will also exclude any project cost not included in the approved project budget, any ordinary governmental or non-project operating cost deemed ineligible by a funding partner. VRE shall make the final determination as to what costs are eligible.

C. Payment does not constitute a final decision about whether a cost is eligible for reimbursement and does not constitute a waiver of any violation by the Contractor of the terms and conditions of the Contract.

D. The Contractor agrees to incur costs in accordance with all provisions of this Contract and any other requirements referenced herein. Payment shall be made for eligible project costs as listed in the Contract and for no other purpose.

E. The Contractor shall remit to VRE any excess payments made to the Contractor disallowed by VRE, or any of their funding agencies, as well as any interest required.

31. APPLICABLE LAW AND COURTS

Any Contract resulting from this solicitation shall be governed in all respects by the laws of the Commonwealth of Virginia and any litigation with respect thereto shall be brought in the federal and state courts of the Commonwealth. The successful Contractor shall comply with applicable Federal, State, and Local laws and regulations.

32. LITIGATION AND NOTIFICATION

The Contractor shall notify the VRE Director of Purchasing and Contract Administration if any of the following occur:

1. The Contractor or any of the Subcontractors are served with a notice of violation of any law, regulation, permit or license which relates to this Contract.

2. Proceedings are commenced which could lead to revocation of related permits or licenses.

3. Permits, licenses or other Government authorizations relating to this Contract are revoked.

4. Litigation is commenced in which the Contractor is a named party, and which also involves as a named party, any Subcontractor of the Contractor who is otherwise a provider of indirect services or products under this Contract.

5. The Contractor or any of the Subcontractors become aware their equipment or facilities or actions are not in compliance or may fail to comply in the future with applicable laws or regulations.

33. CONTRACTUAL DISPUTES

A. Disputes by the Contractor with respect to the Contract shall be decided in the first instance by the Contract Administrator or designee who shall reduce his/her decision to writing, and mail or otherwise furnish a copy thereof to the Contractor. The Contract Administrator's decision shall be final and binding unless within thirty (30) days from the date of such decision, the Contractor appeals the Contract Administrator's decision to the Contracting Officer. The Contracting Officer shall reduce his/her decision to writing, and mail or otherwise furnish a copy thereof to the Contractor no later than thirty (30) days after closeout of the construction project.

B. The Contracting Officer's decision shall be final and binding unless within thirty (30) days from the date of such decision the Contractor institutes legal action in accordance with the Code of Virginia. Pending a final determination of a properly appealed decision of the Contract Administrator and the Contracting Officer, the Contractor shall proceed diligently with the performance of the Contract, including the disputed portions, in accordance with that decision.

C. The Contractor must notify VRE immediately when any current or prospective legal matter related to this Contract, including but not limited to, default, breach, major dispute or litigation, emerges that may affect the Federal Government. The Contractor must include this language in all subcontracts of $25,000 or more.

34. TERMINATION FOR THE CONVENIENCE OF VRE

A. The parties agree that VRE may terminate the Contract or any work or delivery required thereunder, from time-to-time either in whole or in part, without cause whenever the VRE Contracting Officer shall determine that such termination is in the best interest of VRE.

B. Termination, in whole or in part, shall be affected by delivery of a Notice of Termination signed by the VRE Contracting Officer, mailed or delivered to the Contractor, and specifying the extent of termination and the effective date of termination. Upon receipt of such notice, the Contractor shall:

1. Cease any further deliveries or work due under the Contract on the date and to the extent which may be specified in the notice;

2. Place no further orders with any Subcontractor except as may be necessary to perform that portion of the Contract not subject to the notice;

3. Terminate all Subcontractors except those made with respect to Contract performance not subject to the notice;

4. Settle all outstanding liabilities and claims which may arise out of such termination, with the ratification of VRE;

5. Use its best effort to mitigate any damages which may be sustained by the Contractor as a consequence of termination under this Section;

6. As directed by the VRE Contracting Officer, transfer title and deliver to VRE:

    a. The fabricated or un-fabricated parts, work in process, completed work, supplies, and other material produced or acquired for the work terminated; and

    b. The completed or partially completed plans, drawings, information, and other property that, if the Contract had been completed, would be required to be furnished to VRE.

7. Complete performance of the work not terminated; and

8. Take any action that may be necessary, or that the VRE Contracting Officer may direct, for the protection and preservation of the property related to the Contract that is in the possession of the Contractor and in which VRE or the Government has or may acquire an interest.

C. After complying with the foregoing provisions, the Contractor shall submit a termination claim, no later than sixty (60) days after the effective date of its termination, unless an extension is granted by the VRE Contract Administrator. If the Contractor fails to submit the claim within the time allowed, the VRE Contracting Officer may determine, on the basis of information available, the amount, if any, due to the Contractor because of the termination and shall pay the amount determined.

D. If the termination is partial, the Contractor may file a claim with the VRE Contracting Officer or his/her designee for an equitable adjustment of the price(s) of the continued portion of the Contract. The VRE Contracting Officer shall make any equitable adjustment agreed upon. Any claim by the Contractor for an equitable adjustment under this Section shall be requested within thirty (30) days from the effective date of termination unless extended in writing by the VRE Contracting Officer.

E. The VRE Contract Administrator, with the approval of the VRE Contracting Officer, shall pay reasonable costs of termination, including a reasonable amount for profit on services delivered or completed. In no event shall this amount be greater than the original Contract price, reduced by any payments made prior to the Notice of Termination, and further reduced by the price of the serviced not delivered, or those services not provided. The Contract shall be amended accordingly, and the Contractor shall be paid the agreed upon amount.

F. In the event that the parties cannot agree on the whole amount to be paid to the Contractor by reason of termination under this Section, the VRE Contract Administrator shall pay to the Contractor the amounts determined as follows, without duplicating any amount which may have already been paid under Paragraph E. of this Section.

G. With respect to all Contract performance prior to the effective date of Notice of Termination, the total of:

1. Cost of the work performed;

2. The cost of settling and paying any reasonable claims as provided in Paragraph B. above; and

3. A sum as profit on Paragraph G. above determined by VRE to be fair and reasonable.

H. The total sum to be paid shall not exceed the Contract price, as reduced by the amount of payments otherwise made, and as further reduced by the Contract price of services not terminated.

I. In the event that the Contractor is not satisfied with any payments which the Contract Administrator shall determine to be due under this Section, the Contractor may appeal any claim to VRE in accordance with the Contractual Disputes provision of the Contract.

J. Unless otherwise provided in the Contract or by statute, the Contractor shall maintain all records and documents relating to the terminated portion of the Contract for three (3) years after final settlement. This includes all books and other evidence bearing on the Contractor's costs and expenses under the Contract. The Contractor shall make these records and documents available to the Government, at the Contractor's office, at all reasonable times, without any direct charge. If approved by the VRE Contracting Officer, photographs, microphotographs, or other authentic reproductions may be maintained instead of original records and documents.

K. When termination for the convenience of VRE is a provision of the Contract, the Contractor shall include similar provisions in any subcontract, and shall specifically include requirements that Subcontractors make all reasonable efforts to mitigate damages which may be suffered. Failure to include such provisions shall bar the Contractor from any recovery from VRE whatsoever of loss or damage sustained by a Subcontractor as a consequence of termination for convenience.

35. TERMINATION FOR DEFAULT

A. Either party may terminate the Contract, without further obligation, for the default of the other party or its agents or employees with respect to any agreement or provision contained herein.

B. If through any cause, the Contractor shall fail to fulfill in a timely and proper manner its obligations under the Contract, or if the Contractor shall violate any of the covenants, agreements or stipulations of the Contract, VRE shall thereupon have the right to terminate the Contract by giving written notice to the Contractor of such termination. The written notice shall specify the effective date of termination and shall be delivered to the Contractor prior to the effective date of termination.

C. The Contractor shall have the right to cure its default, and thereby avoid termination, during the aforesaid notice period by remedying the circumstances which constitute the default or, where completion of such a remedy is not reasonably possible, then by taking all reasonable steps possible designed to remedy the default promptly.

D. Successive defaults of the same nature, regardless of the Contractor's effort to cure, shall not prevent VRE from terminating the Contract.

36. INDEMNIFICATION

A. The Contractor shall not seek to hold liable VRE, or any of its officers, agents and employees for any claims, suits, actions, judgments, damages, losses, and expenses of any nature whatsoever arising out of the Contract or arising out of the activities funded in whole or in part by the Contract. The Contractor shall defend, indemnify, save, and hold harmless VRE, and its officers, agents, and employees against claims, suits, actions, judgments, damages, losses, and liability, including costs,

fees and expenses, to the extent caused by the negligent acts, errors or omissions, recklessness or intentionally wrongful conduct of the Contractor or the negligent acts, errors or omissions, recklessness or intentionally wrongful conduct of the Contractor's Subcontractors, agents or employees in performance of the Contract. The aforesaid duty to defend shall not apply to the extent prohibited by § 11-4.4 VA. Code Ann.

B. The foregoing shall not apply to liability to the extent caused by or resulting from the negligence, recklessness, or intentionally wrongful conduct of VRE or its officers, agents, or employees, but only with respect to the individual whose negligence, recklessness, or intentionally wrongful conduct caused such liability. Additionally, the foregoing obligations shall survive termination of this Contract with respect to liabilities arising during its term. The Contractor agrees to maintain adequate insurance in an amount and form herein specified and approved by VRE to protect VRE and its officers, agents, and employees from liability arising out of the Contract. Acceptance of the services by VRE shall not waive any of the rights of VRE or its officers, agents, and employees contained in this section nor release or absolve the Contractor from any liability, responsibility or duty contained herein.

37. ANTITRUST

By entering into a Contract, the Contractor conveys, sells, assigns, and transfers to VRE all rights, title and interest in and to all causes of the action it may now have or hereafter acquire under the antitrust laws of the United States and the Commonwealth of Virginia, relating to the particular goods or services purchased or acquired by VRE under said Contract.

38. SEVERABILITY

In the event that any provision shall be adjudged or decreed to be invalid, such ruling shall not invalidate the entire Contract but shall pertain only to the provision in question and the remaining provisions shall continue to be valid, binding and in full force and effect.

39. FAIR EMPLOYMENT CONTRACTING ACT

The Contractor, its agents, employees, assigns or successors, and any persons, firm, or agency of whatever nature with whom it may Contract or make a Contract, shall comply with the provisions of the Virginia Fair Employment Contract Act, Section 2.2-4200 et seq., VA Code Ann. the terms of which are incorporated herein by reference.

40. EMPLOYMENT OF PERSONNEL

The Contractor shall not employ any persons or persons in the employment of VRE for any work required by the terms of the Contract, without the prior written permission of VRE.

41. CONVICT LABOR

In connection with the performance of work under the Contract, the Contractor agrees not to employ any person undergoing sentence of imprisonment except as provided by Public Law 89-176, as amended.

42. GEOGRAPHIC RESTRICTIONS

Procurement transactions will be conducted in a manner that prohibits the use of in state or local geographical preferences in the solicitation and evaluation of Bids or Proposals, except in those cases where applicable statutes or regulations expressly mandate or permit geographic preference. This does not preempt State or local licensing laws. However, geographic location may be a selection criterion in procurements for architectural and engineering (A&E) services, provided its application leaves an appropriate number of qualified firms, given the nature and size of the project, to compete for the Contract.

43. COVENANT AGAINST CONTINGENT FEES

The Contractor warrants that it has not employed or retained any company or person, other than bona fide employees working solely for the Contractor, to solicit or secure the Contract, and that it has not paid or agreed to pay any company or person, other than a bona fide employee working solely for the Contractor, any fee, VRE percentage, brokerage fee, or other considerations, contingent upon or resulting from the award of making of the Contract. For breach or violation of this warranty, VRE shall have the right to annul the Contract without liability, or, at its discretion, to deduct from the Contract price or consideration, or otherwise recover the full amount of such fee, VRE percentage, brokerage fee, gift, or contingent fee.

44. CONFLICT OF INTEREST

A. The Contractor and its officers and employees shall comply with the provisions of the Virginia Conflict of Interest Act (Section 2.2-3100 et. seq., of the Code of Virginia), as amended, the State and Local Government Conflict of Interests Act, and Section 2.2-4300 et. seq. of the Code, the Virginia Public Procurement Act, the terms of which are incorporated herein by reference.

B. VRE is intent on avoiding conflicts of interest associated with the award of the Contract. To these ends, prospective Contractors must identify existing and prospective contractual relations they have (or could have) with agencies which could present sources of conflict as part of the Bid or Proposal submission.

C. VRE standards of conflict prohibit VRE employees, officers, board members, or agents from participating in the selection, award, or administration of a third-party contract or sub agreement supported by federal funds if a real or apparent conflict of interest would be involved. Such a conflict would arise when any of the following parties has a financial or other interest in the entity selected for award (a) an employee, officer, board member or agent (b) any member of his or her family (c) his or her partner or (d) an organization that employs or intends to employ any of the above.

D. VRE standards of conflict also prohibit real or apparent organizational conflicts of interest. An organizational conflict of interest exists when the nature of the work to be performed under a third-party contract or sub agreement may, without some restriction on future activities, result in an unfair competitive advantage to the third-

party Contractor or subrecipient or impair its objectivity in performing the Contract work.

E. Firms participating in the planning and design of the work involved in this Contract are excluded from participating in any part of the construction, to include providing construction management services or manufacturing process, either as a prime or subcontractor.

45. ETHICS IN PUBLIC CONTRACTING

A. This Contract incorporates by reference any State or Federal law related to ethics, conflicts of interest, or bribery, including, by way of illustration and not limitation, the State and Local Government Conflict of Interests Act (Code of Virginia § 2.2-3100 et seq.), the Virginia Governmental Frauds Act (Code of Virginia § 18.2-498.1 et seq.), and Articles 2 and 3 of Chapter 10 of Title 18.2 of the Code of Virginia, as amended (§ 18.2-438 et seq.).

B. The Contractor certifies that its Bid or Proposal is made without collusion or fraud and that it has not offered or received any kickbacks or inducements from any other Contractor, supplier, manufacturer or Subcontractor in connection with their Bid or Proposal, and that they have not conferred on any public employee having official responsibility for this procurement transaction any payment, loan, subscription, advance, deposit of money, services or anything of more than nominal value, present or promised, unless consideration of substantially equal or greater value was exchanged.

46. OFFICIALS NOT TO BENEFIT

No member of or delegate to the Virginia General Assembly, and no member of VRE, the Northern Virginia Transportation Commission, the Potomac and Rappahannock Transportation Commission or the Virginia Passenger Rail Authority, shall be admitted to any share or part of the Contract, or to any benefit that may arise there from; but this provision shall not be construed to extend to the Contract if made with a corporation for its general benefits. No member, officer, or employee of VRE, during his/her tenure or one (1) year thereafter shall have any interest, direct or indirect, in the Contract or the proceeds thereof.

47. ANTI-DISCRIMINATION

A. By submitting a Bid or Proposal, the prospective Contractor certifies to VRE that it will conform to the provisions of Title VI of the Federal Civil Rights Act of 1964, as amended; DOT regulations, "Nondiscrimination in Federally-Assisted Programs of the Department of Transportation" -- Effectuation of Title VI of the Civil Rights Act; the Virginia Fair Employment Act of 1975, as amended, where applicable; all requirements of Title VII of the Civil Rights Act of 1964, as amended, 42 U.S.C. § 20003, and 49 U.S.C. §4332 and any implementing requirements FTA may issue; the provisions of 49 U.S.C, § 5332, "Nondiscrimination in Federal Transit Programs," which prohibits discrimination on the basis of race, color, religion, national origin, sex (including sexual orientation), disability or age, and prohibits discrimination in employment or business opportunity; and Section 2.2-4311 of the Virginia Public Procurement Act.

B. During the performance of the Contract, the Contractor agrees as follows:

1. The Contractor will not discriminate against any employee or applicant for employment because of race, color, religion, national origin, sex (including sexual orientation), disability or age. The Contractor agrees to take affirmative action to ensure that applicants are employed and that employees are treated during employment without regard to their race, color, religion, national origin, sex (including sexual orientation), disability or age. Such action shall include, but not be limited to, the following: employment, upgrade, demotion or transfer, recruitment, or recruitment advertising, layoff or termination; rates of pay or other forms of compensation; and selection for training including apprenticeship. The Contractor agrees to post in conspicuous places, available to employees and applicants for employment, notices setting forth the provisions of this nondiscrimination clause. The Contractor also agrees to comply with any implementing requirements FTA may issue.

2. The Contractor, in all solicitations or advertisements for employees placed by or on behalf of the Contractor, shall state that such Contractor is an equal opportunity employer.

3. Notices, advertisements, and solicitations placed in accordance with Federal law, rule or regulation shall be deemed sufficient for the purpose of meeting the requirements of this Section.

4. The Contractor will comply with all applicable requirements of Title IX of the Education Amendments of 1972, as amended, 20 U.S.C. §§1681-1683, 1685-1688, with U.S. DOT regulations, "Nondiscrimination on the Basis of Sex in Education Programs or Activities Receiving Federal Financial Assistance," 49 C.F.R. Part 25, and with any implementing directives that U.S. DOT or FTA may promulgate, which prohibit discrimination on the basis of sex.

5. The Contractor shall comply with applicable Federal guidance issued in compliance with Executive Order Number 13166, "Improving Access to Services for Persons with Limited English Proficiency," August 11, 2000, 42 U.S.C. §2000d-1 note, and with the requirements and provisions of U.S. DOT Notice, "DOT Guidance to Recipients on Special Language Services to Limited English Proficient (LEP) Beneficiaries," 66 Fed. Reg. 6733 et seq., January 22, 2001.

6. The Contractor agrees to comply with all applicable requirements of the Age Discrimination Act of 1975, as amended, 42 U.S.C. §§ 6101 et seq., and implementing regulations, which prohibit employment and other discrimination against individuals on the basis of age.

7. The Contractor agrees to comply with all applicable requirements of any other nondiscrimination statutes(s) that may apply.

8. The Contractor agrees to include these requirements in each subcontract financed in whole or in part with Federal assistance provided by FTA, modified only if necessary, to identify the affected parties.

48. ACCESS REQUIREMENTS FOR INDIVIDUALS WITH DISABILITIES

A. The Contractor is responsible to ensure the General Contractor complies with the Americans with Disabilities Act (ADA) requirements as set forth in the drawings and/or technical specifications.

B. The Contractor must ensure General Contractor complies with the provisions of the Virginians with Disabilities Act (§ 51.5-40 through § 51.5-46 of the Code of Virginia (1950), as amended), the terms of which are incorporated herein by reference, as set forth in the drawings and/or technical specifications.

C. The Contractor shall defend and hold VRE harmless from any expense or liability arising from the Contractor's non-compliance in meeting its obligations herein.

49. DRUG OR ALCOHOL ABUSE- CONFIDENTIALITY AND OTHER CIVIL RIGHTS PROTECTIONS

The Contractor agrees to comply with confidentiality and other civil rights protections of the Drug Abuse Office and Treatment Act of 1972, as amended, 21 U.S.C. §§ 1174 et seq., with the Comprehensive Alcohol Abuse and Alcoholism Prevention, Treatment and Rehabilitation Act of 1970, as amended, 42 U.S.C. §§ 4581 et seq., and with the Public Health Service Act of 1912, as amended, 42 U.S.C. §§ 290dd-3 and 290ee-3, and any subsequent amendments to these acts.

50. DRUG-FREE WORKPLACE

A. During the performance of the Contract, the Contractor agrees to (i) provide a drug-free workplace for the Contractor's employees; (ii) post in conspicuous places, available to employees and applicants for employment, a statement notifying employees that the unlawful manufacture, sale, distribution, dispensation, possession, or use of a controlled substance or marijuana is prohibited in the Contractor's workplace and specifying the actions that will be taken against employees for violations of such prohibition; (iii) state in all solicitations or advertisements for employees placed by or on behalf of the Contractor that the Contractor maintains a drug-free workplace; and (iv) include the provisions of the foregoing clauses in every subcontract or purchase order over $10,000, so that the provisions will be binding upon each Subcontractor or vendor.

B. "Drug-free workplace" means a site for the performance of work done in connection with a specific contract awarded to a contractor in accordance with this chapter, the employees of whom are prohibited from engaging in the unlawful manufacture, sale, distribution, dispensation, possession or use of any controlled substance or marijuana during the performance of the Contract.

51. AUDIT

A. The Contractor hereby agrees to maintain all books, records, accounts, and reports required under the Contract for a period of not less than five (5) years after the date of termination or expiration of the Contract, except in the event of litigation or settlement of claims arising from the performance of the Contract, in which case the Contractor agrees to maintain same until VRE, the FTA Administrator, the Comptroller General, the Virginia Department of Rail and Public Transportation (DRPT), or any of their duly authorized representatives, have disposed of all such litigation, appeals, claims, or exceptions related thereto. Reference 49 CFR 18.39(i)(11). The Contractor shall provide any documentation requested by VRE within fifteen (15) calendar days of such request.

B. VRE, its authorized agents, the Federal Government, authorized representatives of DRPT, and/or state auditors shall also have full access to and the right to examine any of said materials during said period. The Contractor shall conduct audits in accordance with U.S. General Accounting Office, Government Auditing Standards.

52. PUBLICATIONS

Articles, papers, bulletins, reports or other material reporting the results and findings of the work conducted under the Contract shall not be presented publicly or published without the prior written approval of VRE, and all materials shall remain the sole property of VRE. Publications and reports officially released after the date of execution of the Contract describing the results of any investigation or study hereunder participated in by VRE shall give recognition to VRE in the text and title page to the nature of its cooperative character.

53. COPYRIGHTS

A. All copyrightable works created pursuant to the Contract shall be considered work made for hire and shall belong solely and exclusively to VRE. If, despite the foregoing, VRE is not deemed the author and initial owner of any copyrightable works created pursuant to the Contract, the Contractor agrees to irrevocable assign and does hereby irrevocably assign to VRE the sole, exclusive and complete copyright interest in such works, and the Contractor shall execute and deliver such further documents as VRE may reasonably request for the purpose of acknowledging, implementing or recording this assignment.

B. The Contractor agrees and warrants that no individual, other than regular employees of the Contractor or VRE working within the scope of their employment, shall participate in the creation of any copyrightable works to be delivered under the Contract, unless such individual and his or her employer, if any, have signed an intellectual property agreement satisfactory to VRE before commencing such participation.

C. The Contractor hereby agrees that, notwithstanding anything else in the Contract, in the event of any breach of the Contract by VRE, the Contractor's remedy shall not include any right to rescind or otherwise revoke or invalidate the provisions of this Section. Similarly, no expiration or termination of the Contract by VRE shall

have the effect of rescinding, terminating or otherwise invalidating the provisions of this Section.

54. RIGHTS IN DATA

A. Data and information submitted to VRE may be required to be made available for dissemination under the Freedom of Information Act, or other Federal, State and Local statute(s) in accordance with implementation instructions contained in 49 C.F.R. §19.36, revised March 2000, to the extent applicable, and any subsequent applicable Federal, State and Local requirements that may be promulgated.

B. All "subject data" first produced in the performance of this Contract shall be the sole property of VRE. The Contractor agrees not to assert any rights at common law or equity and not to establish any claim to statutory copyright in such data. Except for its own internal use, the Contractor shall not publish or reproduce such data, in whole or in part, or in any manner or form, nor authorize others to do so without the prior written consent of VRE, until such time as the Federal Government or VRE may have either released or approved the release of such data to the public; this restriction on publication, however, does not apply to any Contract with an academic institution.

55. ROYALTIES

While VRE recognizes that certain materials or component parts may be produced under the terms of licensing or cross licensing agreements, it must be understood that the use of such materials and component parts requiring the application of recurring royalty charges, costs or payments is specifically prohibited. The Contractor agrees to and does hereby grant VRE a royalty-free license to all such data which they may cover by copyright and to all designs as to which they may assert any rights or establish any claim under the design patent or copyright laws.

56. PROTECTION OF SENSITIVE SECURITY INFORMATION

To the extent applicable, the Contractor shall comply with 49 C.F.R. Part 1520, "Protection of Sensitive Security Information," and with any implementing regulations, requirements, or guidelines that the Federal Government may issue.

57. EXAMINATION OF RECORDS

A. The Contractor agrees as follows:

1. Reports. The Contractor agrees to provide to VRE those reports required by the U.S. DOT's and Commonwealth of Virginia's grant management rules and any other reports the Federal Government and State Government may require.

2. Records Retention. The Contractor agrees to provide VRE, the FTA Administrator, the Comptroller General of the United States representatives of DRPT, or any authorized representatives access to any books, documents, paper and records of the Contractor which are directly pertinent to the Contract for the purpose of making audits, examinations, excerpts and transcriptions even after the project has been closed-out. The Contractor also agrees, pursuant to 49 C.F.R. 633.17 to provide the FTA Administrator or his/her authorized representatives, including any PMO contractor, access to the Contractor's

records and construction sites pertaining to a major capital project, defined at 49 U.S.C. 5302(a)1, which is receiving federal financial assistance through the programs described at 49 U.S.C. 5307, 5309, or 5311. The Contractor agrees that it will maintain intact and readily accessible all data, books, accounts, documents, reports, records, contracts, and supporting materials relating to the Contract as the Federal Government and Commonwealth of Virginia may require during the course of the Contract and for five (5) years thereafter, except in the event of litigation or settlement of claims arising from the performance of the Contract, in which case the Contractor agrees to maintain the same until VRE, the FTA Administrator, the Comptroller General, or any of their duly authorized representatives have disposed of all such litigation, appeals, claims or exceptions related thereto.

3. Access to Records. Upon request, the Contractor shall permit VRE, its authorized agents, state auditors, including authorized representatives of DRPT, the Secretary of Transportation, and the Comptroller General of the United States, or their authorized representatives, to inspect all project work, materials, payrolls, and other data, and to audit the books, records, and accounts pertaining to the project.

B. The Contractor further agrees to include in all of its subcontracts a provision to the effect that the Subcontractor agrees that VRE, its authorized agents, state auditors, the Secretary of Transportation, and the Comptroller of the United States, or their authorized representatives, until the expiration of five (5) years after final payment under the subcontract, be permitted to inspect and audit all data and records of the Subcontractor relating to its performance under the subcontract.

C. The term "subcontract" as used in this clause excludes (1) purchase orders not exceeding $100,000 and (2) subcontractors or purchase orders for public utility services at rates established for uniform applicability to the general public.

D. VRE shall continue to have for a period beyond five (5) years after final payment under the Contract, the right to inspect and audit all data and records which relate to:

1. Appeals under the "Disputes" clause of the Contract;

2. Litigation of claims arising out of the performance of the Contract; or

3. Costs and expenses of the Contract as to which exception has been taken by VRE or the Commonwealth of Virginia or any of its duly authorized representatives.

E. The extended right of inspection shall continue for such period beyond the five (5) years after final payment under the Contract until such appeals, litigations, claims or exceptions have been disposed of, and for such period thereafter as required for review by the Virginia Department of Transportation (VDOT) and VRE.

F. Notification of Federal Participation. In the announcement of any contract award for goods or services (including construction services) having an aggregate value of $500,000 or more, the Contractor agrees to specify the amount of Federal assistance to be used in financing that acquisition of goods and services and to express the amount of that Federal assistance as a percentage of the total cost of that third-party contract.

58. TAXES

Sales of items purchased directly by VRE under the Contract shall be exempt from state sales and use tax and federal excise and transportation taxes to the extent permitted by law. State sales and use tax certificates of exemption, and VRE's federal excise tax exemption registration number will be furnished upon request. The foregoing shall not be construed to imply that the Contractor is exempt from all applicable taxes.

59. INSURANCE

Before beginning work under the Contract or any extension, the Contractor must provide to VRE a Certificate of Insurance indicating that the Contractor has in force, at a minimum, the coverage denoted by the insurance requirements included herein this solicitation. The Contractor must maintain this coverage until the completion of the Contract or as otherwise stated in the Contract Documents. All required insurance coverage must be acquired from insurers that are authorized to do business in the Commonwealth of Virginia, with a rating of "A-" or better and a financial size of "Class VII" or better in the latest edition of the A.M. Best Co. Guides.

60. SAFETY RULES AND SECURITY AT VRE'S RAILROAD FACILITIES

A. In the performance of this Contract, the Contractor shall comply with the following:

1. VRE Safety and Security Guidelines (Attachment C)

In an emergency, the Contractor shall act at its discretion to prevent threatened damage, injury or loss.

B. The Contractor and all its employees performing work on this Contract must complete the online Contractor safety training provided by VRE at https://www.vre.org/about/safety-and-security/contractors/. Payment of employees for time spent completing the online safety training and any expenses incurred is the sole responsibility of the Contractor and is not eligible for reimbursement from VRE.

C. The Contractor is responsible for initiating, maintaining and supervising all safety precautions and programs in connection with this Contract. This includes the Contractor's employees and other persons who may be affected thereby, as well as materials and equipment, both in storage and on-site.

D. It is incumbent upon the Contractor and its employees to work in a safe manner at all times due to the nature of rail service. The Contractor while performing work around VRE's facilities shall be alert for train movement through the facility to ensure safe operations. While train movement is ongoing at the facility the Contractor shall move to a safe distance. VRE reserves the right to require the Contractor and its employees to meet the safety qualifications required by the applicable Host Railroads, Federal Railroad Administration, and VRE's safety rules for operations.

61. PROTECTION OF EXISTING VEGETATION, STRUCTURES, EQUIPMENT, UTILITIES AND IMPROVEMENTS

A. The Contractor shall preserve and protect all existing structures, equipment, and vegetation (such as trees, shrubs, and grass) on or adjacent to the work site, which are not to be removed and which do not unreasonably interfere with the work required under this Contract. The Contractor shall avoid damaging vegetation that will remain in place. If any limbs or branches of trees are broken during Contract performance, or by the careless operation of equipment, or by workmen, the Contractor shall trim those limbs or branches with a clean cut and paint the cut with a tree-pruning compound as directed by VRE or its authorized representative.

B. The Contractor shall protect from damage all existing improvements and utilities to include, but not limited to, the following:

1. At or near the work site;
2. Adjacent Host Railroad operating areas; and
3. On the adjacent property of a third party, the locations of which are made known to or should be known by the Contractor.

C. The Contractor shall repair any damage to those facilities, including those that are the property of a third party, resulting from failure to comply with the requirements of this Contract or failure to exercise reasonable care in performing the work. Repairs are to be performed as needed or on a 24-hour basis as may be required by VRE at no additional cost. If the Contractor fails or refuses to repair the damage promptly, the VRE Contracting Officer may have the necessary work performed and charge the cost to the Contractor.

62. ENVIRONMENTAL REGULATIONS

A. The Contractor and any Subcontractors are required to comply with all applicable Federal environmental standards, orders or requirements issued under Section 508 of the Federal Water Pollution Control Act, as amended, 33 U.S.C. §1368, and other provisions of the Federal Water Pollution Control Act, as amended, 33 U.S.C. §§1251 *et seq*.; Environmental Protection Agency regulations (40 C.F.R. Part 15); National Environmental Policy Act of 1969, as amended, 42 U.S.C. §§4321 *et seq*.; Executive Order Number 11514, as amended, "Protection and Enhancement of Environmental Quality," 42 U.S.C. §4321 note; FTA statutory requirements at 49 U.S.C. §5324(b); Council on Environmental Quality regulations pertaining to

compliance with the National Environmental Quality Act of 1969, as amended, 40 C.F.R Part 1500 *et seq*.; the joint FHWA/FTA regulations, "Environmental Impact and Related Procedures," 23 C.F.R. Part 771 and 49 C.F.R. Part 622, and, when promulgated, FHWA/FTA joint regulations, "NEPA and Related Procedures for Transportation Decision Making, Protection of Public Parks, Wildlife and Waterfowl Refuges, and Historic Sites," 23 C.F.R. Part 1420 and 49 C.F.R Part 623.

B. As stated in the aforementioned regulations, if the Contract causes or results in adverse environmental effects, all reasonable measures to minimize those adverse effects must be taken. In addition, all environmental mitigation measures identified as commitments in applicable environmental documents, such as environmental assessments and documents required by 49 U.S.C. §303, must be completed. These commitments include any conditions the Federal Government imposes on a finding of no significant impact or record of decision. These mitigations measures are incorporated by reference and made part of the Grant Agreement and may not be modified or withdrawn without written approval of the Federal Government.

C. The Contractor agrees to include in Subcontracts exceeding $100,000, adequate provisions to ensure that Contract participants report the use of facilities placed or likely to be placed on EPA's "List of Violating Facilities," refrain from using violating facilities, report violations to FTA and the Regional EPA Office. VRE will report and requires the Contractor and any Subcontractor to report any violation of these requirements resulting from implementation of the Contract by the Contractor, Subcontractor (at any tier), or VRE to FTA and the appropriate U.S. EPA Regional Office. All plans, drawings, and other documents produced as a result of the Contract should comply with these regulations when applicable.

D. The Contractor also shall include these requirements in each subcontract exceeding $100,000 financed in whole or in part with Federal assistance provided by FTA.

63. <u>USE OF REAL PROPERTY, EQUIPMENT AND SUPPLIES</u>

A. The Contractor understands and agrees that the Federal Government retains a Federal interest in any real property, equipment, and supplies financed with Federal assistance until, and to the extent, that the Federal Government relinquishes its Federal interest in that property. Unless otherwise approved by FTA, the Contractor agrees to comply with the following requirements with respect to real property, equipment, and supplies financed by the Contract:

1. <u>Use of Property.</u> The Contractor agrees to use Contract real property, equipment, and supplies for appropriate Contract purposes (which may include joint development purposes that generate program income, both during and after the award period used to support transit activities) for the duration of the useful life of that property, as required by VRE. Should the Contractor unreasonably delay or fail to use Contract property during the useful life of that property, the Contractor agrees that it may be required to return the entire amount of the Federal assistance expended on that property. The Contractor further agrees to notify VRE immediately when any Contract property is

withdrawn from Contract use or when Contract property is used in a manner substantially different from the representations the Contractor has made in its Bid/Proposal for the Contract.

2. General Federal Requirements. A Contractor that is an institution of higher education, or a private nonprofit organization, agrees to comply with 49 C.F.R. §§ 19.30 through 19.37, including any amendments thereto, and other applicable guidelines or regulations the Federal Government may issue. Any exception to the requirements of 49 C.F.R. §§ 18.31 through 18.34, and to 49 C.F.R. §§ 19.30 through 19.37, requires the express approval of VRE. A Contractor that is a for-profit organization agrees to comply with property management standards satisfactory to VRE. In addition, the Contractor consents to FTA's established reimbursement requirements for premature dispositions of certain Contract equipment *(i.e.,* when Contract equipment is withdrawn from appropriate use before the expiration of the equipment's useful life established by FTA), as explained in this Section.

3. Maintenance. The Contractor shall maintain Contract real property and equipment in good operating order, in compliance with any guidelines, directives, or regulations FTA may issue.

4. Records. The Contractor shall keep satisfactory records regarding the use of Contract real property, equipment, and supplies, and submit them to VRE upon request for such information as may be required to assure compliance with this Section of the Contract.

5. Encumbrance of Contract Property. The Contractor shall maintain satisfactory continuing control of Contract real property or equipment. Thus, absent written authorization by VRE permitting otherwise:

    a. Written Transactions: The Contractor shall refrain from executing any transfer of title, lease, lien, pledge, mortgage, encumbrance, third party contract, grant anticipation note, alienation, or any other obligation that in any way would affect the Federal interest in any Contract real property or equipment.

    b. Oral Transactions: The Contractor shall refrain from obligating itself in any manner to any third party with respect to Contract real property or equipment.

    c. Other Transactions: The Contractor shall refrain from taking any action that would either adversely affect the Federal interest or impair the Contractor's continuing control of the use of Contract real property or equipment.

6. Transfer of Contract Property. The Contractor understands and agrees as follows:

a. Contractor Request: The Contractor may transfer assets financed with Federal assistance authorized for 49 U.S.C. Chapter 53 to a public body to be used for any public purpose with no further obligation to the Federal Government, provided the transfer is approved by VRE and the Federal Transit Administration and conforms with the requirements of 49 U.S.C. §§ 5334(g)(l) and (2).

b. Federal Government Direction: The Contractor agrees that the Federal Government may direct the disposition of, and even require the Contractor to transfer title to, any real property, equipment, or supplies financed with Federal assistance under the Contract.

c. Leasing Contract Property to Another Party: If the Contractor leases any Contract asset to another party with VRE's written permission, the Contractor agrees to retain ownership of the leased asset and assure that the lessee will use the Contract asset appropriately, either through a "Lease and Supervisory Agreement" between the Contractor and lessee, or another similar document, unless VRE determines otherwise in writing. Upon request by VRE, the Contractor agrees to provide a copy of any relevant documents.

7. Disposition of Contract Property. With prior VRE approval, the Contractor may sell, transfer, or lease Contract property and use the proceeds to reduce the gross project cost of other eligible capital transit projects to the extent permitted by 49 U.S.C. § 5334(g)(4). Nevertheless, the Contractor agrees that VRE may establish the useful life of Contract property, and that the Contractor will use Contract property continuously and appropriately throughout that useful life.

a. Contract Property Whose Useful Life Has Expired: When the useful life of Contract property has expired, the Contractor agrees to comply with VRE's disposition requirements.

b. Contract Property Prematurely Withdrawn from Use: For property withdrawn from appropriate use before its useful life has expired, the Contractor agrees as follows:

1. Notification Requirement: The Contractor agrees to notify VRE immediately when any Contract real property, equipment, or supplies are prematurely withdrawn from appropriate use, whether by planned withdrawal, misuse, or casualty loss.

2. Calculating the Fair Market Value of Prematurely Withdrawn Contract Property: The Contractor agrees that the Federal Government retains a Federal interest in the fair market value of Contract property prematurely withdrawn from mass transportation use. The amount of the Federal interest in the property shall be determined on the basis of the ratio of the Federal assistance awarded by the Federal Government for the

property to the actual cost of the property. The Contractor agrees that the fair market value of property prematurely withdrawn from use will be calculated as follows:

a. Equipment: Unless otherwise determined in writing by VRE, the Contractor agrees that fair market value shall be calculated by straight-line depreciation of the equipment or supplies, based on the useful life of the equipment or supplies established or approved by the FTA. In addition, the fair market value of equipment and supplies shall be the value immediately before the occurrence prompting the withdrawal of that property from use. In the case of equipment or supplies lost or damaged by fire, casualty, or natural disaster, the fair market value shall be calculated on the basis of the condition of that property immediately before the fire, casualty, or natural disaster, irrespective of the extent of insurance coverage. The Contractor may use its own disposition procedures, provided that those procedures comply with State laws.

b. Real Property: The Contractor agrees that the fair market value of real property shall be determined either by competent appraisal based on an appropriate date approved by the Federal Government, as provided by 49 C.F.R. Part 24, or by straight line depreciation, whichever is greater.

c. Exceptional Circumstances: The Contractor agrees that VRE may require the use of another method of determining the fair market value of property. In unusual circumstances, the Contractor may request that another reasonable valuation method be used including, but not limited to, accelerated depreciation, comparable sales, or established market values. In determining whether to approve such a request, VRE may consider any action taken, omission made, or unfortunate occurrence suffered by the Contractor with respect to the preservation or conservation of Contract property withdrawn from appropriate use.

3. Obligations to VRE: Unless otherwise approved in writing by VRE, the Contractor shall remit to VRE the Federal interest in the fair market value of Contract real property, equipment, or supplies prematurely withdrawn from appropriate use. In the case of fire, casualty, or natural disaster, the Contractor may fulfill its responsibilities with respect to the Federal interest remaining in the damaged equipment or supplies by either:

a. Investing an amount equal to the remaining Federal interest in like-kind equipment or supplies that are eligible for assistance within the scope of the Contract that provided financial assistance for the damaged equipment or supplies; or

b. Returning to VRE an amount equal to the remaining Federal interest in the damaged property.

8. Insurance Proceeds. If the Contract receives insurance proceeds as a result of damage or destruction to the Contract property, the Contractor shall:

a. Apply those insurance proceeds to the cost of replacing the damaged or destroyed Contract property taken out of service, or

b. Return to VRE an amount equal to the remaining Federal interest in the damaged or destroyed property.

9. Transportation-Hazardous Materials. The requirements of U.S. Research and Special Programs Administration regulations, "Shippers - General Requirements for Shipments and Packaging's," 49 C.F.R. Part 173, apply to the transportation of hazardous materials.

10. Misused or Damaged Project Property. If any damage to Contract real property, equipment, or supplies results from abuse or misuse of that property occurring with the Contractor's knowledge and consent, the Contractor shall restore that real property or equipment to its original condition or refund the value of the Federal interest in the damaged property, as the Federal Government may require.

64. INCORPORATION OF FEDERAL TRANSIT ADMINISTRATION (FTA) TERMS

A. This Contract is subject to certain provisions required by the U.S. Department of Transportation, as set forth in FTA Circular 4220.1.G, which are attached herein. All FTA-mandated terms control in the event of a conflict with any other provisions of this Contract. The Contractor must not perform any act, fail to perform any act or refuse to comply with any VRE requests if doing so would cause VRE to violate the FTA terms and conditions.

B. The Contractor must include this clause without modification in each subcontract(s) that is financed in whole or in part by the FTA. It is further agreed that the clauses shall not be modified, except to identify the Subcontractor(s) who will be subject to the provisions.

65. INCORPORATION OF VIRGINIA PASSENGER RAIL AUTHORITY (VPRA) TERMS

The Contractor, their agents and employees shall comply with all covenants and provisions of the Virginia Passenger Rail Authority (VPRA) Master Agreement for

the Use of Commonwealth Transportation Funds with the Northern Virginia Transportation Commission (NVTC) dated August 9, 2022, or most recent Agreement, and shall be made expressly a part of any subcontracts executed by the Contractor and shall be binding on all subcontractors, vendors, their agents and employees.

66. [RESERVED]

X. INSURANCE REQUIREMENTS

01. GENERAL REQUIREMENTS

A. The Contractor shall secure, pay the premiums for and keep in force until the expiration of the Contract, and any renewal thereof, adequate insurance as identified in the "VRE Insurance Coverage Requirements" document. Items marked "X" are required to be provided. By signing and submitting a Bid or Proposal under this solicitation, the Contractor certifies if awarded the Contract, the Contractor will have the insurance coverage identified and described below in the VRE Insurance Coverage Requirements at the time of Contract award.

B. All required insurance coverage must be acquired from insurers that are authorized to do business in the Commonwealth of Virginia, with a rating of "A-" or better and a financial size of "Class VII" or better in the latest edition of the A.M. Best Co. Guides.

C. The Contractor agrees to include the provisions of the foregoing clause in every subcontract or purchase order so that the provisions will be binding upon each Subcontractor or vendor. All insurance provided by the Contractor and the Contractor's Subcontractors shall be primary to any insurance coverage VRE may possess.

D. The Contractor further certifies that it and any Subcontractors shall maintain these insurance coverages and the minimum limits of liability as stated, during the entire term of the Contract and that all insurance coverages will be provided by insurance companies authorized to sell insurance in the Commonwealth of Virginia. The Contractor's insurance shall be primary to all other coverage VRE may possess.

E. The Contractor shall furnish VRE proof of compliance with these insurance requirements in the form of an original Certificate of Insurance signed by an authorized representative or agent of the insurance company(ies). The Certificate of Insurance must be furnished within ten (10) calendar days of receipt of the "Notice of Intent to Award" and before any work under the resultant Contract will be allowed to commence.

F. Failure to provide the Certificate(s) when required may be cause for VRE to award a Contract to the next responsible and responsive Bidder. However, in no event shall work be performed until the required Certificates of Insurance have been furnished and approved by VRE.

G. All insurance must be raised to an amount approved by VRE as change orders are made to the Contract.

H. Renewal certificates shall be furnished to VRE not less than fourteen (14) calendar days prior to the expiration or termination date of the applicable policy(ies). Otherwise, VRE may halt all work under the Contract upon expiration or other

termination of any required coverage and work will not be allowed to resume until a satisfactory renewal certificate is received.

I. If the Contractor is furnished a written notice of cancellation from the insurance carrier, the Contractor shall provide VRE a copy of the cancellation notice within thirty (30) calendar days of receipt of the notification.

J. In no event shall the failure by VRE to receive certificates of insurance required hereunder, or to receive them by the date(s) required hereunder, be construed as a waiver of the Contractor's obligation to obtain the required insurance coverages. Failure by VRE to demand any certificate of insurance or other evidence of full compliance with the insurance requirements set forth herein, or failure by VRE to identify a deficiency in the evidence provided, shall not be construed as a waiver of the obligation to procure or maintain the insurance required hereunder. The acceptance of delivery by VRE of any certificate of insurance does not constitute approval or agreement that the insurance requirements have been met or that the insurance policies identified in the certificates of insurance are in compliance with such requirements.

02. <u>COMMERCIAL GENERAL LIABILITY INSURANCE</u>

A. The Contractor shall procure and maintain, at its own expense, for the duration of the performance of the work, Commercial General Liability Insurance ("CGL Insurance") having a combined single limit of not less than $5,000,000 per occurrence for all loss, damage, cost and expense, including attorneys' fees, arising out of bodily injury liability and property damage liability during the policy period, applying separately to each annual period. Said policy shall include explosion, collapse, and underground hazard (XCU) coverage, and shall be signed and endorsed to name "Northern Virginia Transportation Commission and the Potomac and Rappahannock Transportation Commission, together known as Virginia Railway Express and the Virginia Passenger Rail Authority" both as the certificate holder and as an additional insured and shall include a severability of interests provision. The signed endorsement page must be submitted with the Certificate of Insurance.

B. The Contractor shall obtain a second separate Commercial General Liability Insurance Certificate. The certificate shall be signed and endorsed to name "CSX Transportation, Inc." both as the certificate holder and as an additional insured and shall include a severability of interests provision. The Insurance Certificate shall state that contractual liability is included within 50' of the Railroad. The signed endorsement page must be submitted with the Certificate of Insurance.

03. <u>AUTOMOBILE LIABILITY INSURANCE</u>

A. The Contractor shall procure and maintain, at its own expense, for the duration of the performance of the work, Automobile Liability Insurance with a combined single limit of not less than $1,000,000 each occurrence for injury to or death of persons and damage to or loss or destruction of property, applying separately to each annual period. Said policy or policies shall be endorsed to name "Northern Virginia Transportation Commission and the Potomac and Rappahannock

Transportation Commission, together known as Virginia Railway Express and the Virginia Passenger Rail Authority" both as the certificate holder and as an additional insured and shall include a severability of interests provision. The signed endorsement page must be submitted with the Certificate of Insurance.

B. The Contractor shall obtain a second separate Automobile Liability Insurance Certificate. The certificate shall be signed and endorsed to name "CSX Transportation, Inc." both as the certificate holder and as an additional insured and shall include a severability of interests provision. The signed endorsement page must be submitted with the Certificate of Insurance.

04. WORKERS' COMPENSATION AND EMPLOYERS' LIABILITY INSURANCE

The Contractor shall procure and maintain, at its own expense, for the duration of the performance of the work, Workers' Compensation and Employers' Liability Insurance for all of its employees engaged in the work in an amount not less than the minimum required by § 2.2-4332 of the *Code of Virginia* (1950), as amended, and the Virginia Workers' Compensation Act, § 65.2-100 et seq. of the *Code of Virginia* (1950), as amended.

05. VRE INSURANCE COVERAGE REQUIREMENTS

Section continues on following page

"X" denotes that coverage is required. **Applicability**	**Description**	**Coverage**
X	1. Workers' Compensation and Employer's Liability	***Statutory Workers' Compensation and Employers' Liability insurance with limits of not less than $1,000,000.***
X	Admitted in Virginia	YES
X	All States Endorsement	Statutory
	USL&H Endorsement	Statutory
	Voluntary Compensation	Statutory
X	2. General Liability shall be Commercial General Liability endorsed as broad form to include minimum limits:	***Commercial General Liability (CGL) coverage with limits of not less than $5,000,000 per occurrence for all loss, damage, cost and expense, including attorneys' fees, arising out of bodily injury liability and property damage liability during the policy period. The signed endorsement page must be submitted with the Certificate of Insurance. Refer to #13 for list of additional insured.***
	Contractual Liability	
	Personal Injury	
	Independent Contractors	
	XCU Property Damage Exclusion Deleted	
X	3. Commercial Automobile Liability (Coverage sufficient to cover all vehicles owned, used, or hired, by the Bidder/Offeror, its agents, representatives, employees or Subcontractors.)	***Commercial Automobile Liability insurance with limits of not less than $1,000,000 each occurrence for injury to or death of persons and damage to or loss or destruction of property. Refer to #13 for list of additional insured.***
X	4. Professional Errors and Omissions (Professional Liability)	$1,000,000
	5. Builder's Risk	Contract Value
	6. Installation Floater	Contract Value
	7. Garage Liability	
	8. Garage Keeper's Legal Liability	
	9. Fire Legal Liability	
	10. Railroad Protective Liability Insurance**. VRE shall be named as insured. The language shall read as follows: "Northern Virginia Transportation Commission and the Potomac and Rappahannock Transportation Commission, together known as Virginia Railway Express."** Furnish the policy prior to entry on VRE property or any other railroad property upon which VRE operates.	***Railroad Protective Liability Insurance with limits of not less than $5,000,000 combined single limit for bodily injury and/or property damage per occurrence and an aggregate annual limit of $10,000,000.***
	11. Railroad Protective Liability Insurance**.** An additional policy shall name **CSX Transportation, Inc**. as insured. Furnish the policy prior to entry on CSXT property or any other railroad property upon which CSXT operates.	***Railroad Protective Liability Insurance with limits of not less than $5,000,000 combined single limit for bodily injury and/or property damage per occurrence and an aggregate annual limit of $10,000,000.***
	12. Pollution Liability.	Contract Value
X	13. **VRE and other agencies** shall be named as **additional insured** on the Commercial General and Automobile Liability policy. This coverage is primary to all other coverage VRE may possess. **The language shall read as follows:** "Northern Virginia Transportation Commission and the Potomac and Rappahannock Transportation Commission, together known as Virginia Railway Express and the Virginia Passenger Rail Authority and their respective officers, agents, and employees are named as additional insureds."	
X	14. Best's Guide Rating – A-:VII or better or Equivalent	
X	15. The Certification must state: ***RFP 026-007 Cost Estimating and Cost Validation Services for L'Enfant Station and Fourth Track Improvements Project***	
X	16. Umbrella Liability	$5,000,000

XI. SWaM BUSINESS UTILIZATION

01. <u>SMALL, WOMEN-OWNED AND MINORITY-OWNED (SWaM) BUSINESS UTILIZATION</u>

A. The Contractor is encouraged to seek and use Small, Women-owned, and Minority-owned ("SWaM") businesses in relation to this Contract. Information regarding the Commonwealth's commitment to SWaM businesses can be found in § 2.2-4310 of the *Code of Virginia* (1950), as amended.

B. The Contractor shall submit a report of SWaM utilization and payments made to SWaMs on a quarterly basis as determined by VRE. The report shall include documentation of efforts to achieve SWaM participation. The Contractor is required to maintain records and documents of payments to SWaMs for three (3) years following the performance of the Contract and shall make these records available to VRE upon request.

XII. ATTACHMENTS

A. SCOPE OF WORK

B. REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF BIDDERS/OFERORS

C. VRE SAFETY AND SECURITY GUIDELINES

D. FEDERAL TRANSIT ADMINISTRATION (FTA) THIRD PARTY CONTRACT PROVISIONS